SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES
OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, & 30

1. REQUISITION NO.	
2. CONTRACT NO.	
3. AWARD/EFFECTIVE DATE	
4. ORDER NO.	
5. SOLICITATION NUMBER	36C26126Q1034
6. SOLICITATION ISSUE DATE	08-18-2026
7. FOR SOLICITATION INFORMATION CALL: a. NAME	Victoria Torres
b. TELEPHONE NO. (No Collect Calls)	7027919000
8. OFFER DUE DATE/LOCAL TIME	08-31-2026 1500 PDT

9. ISSUED BY CODE 00261

Department of Veterans Affairs
Network Contracting Office 21
6900 N. Pecos Road, Building 6
North Las Vegas
NV 89086

10. THIS ACQUISITION IS [ ] UNRESTRICTED OR [X] SET ASIDE: 100 % FOR:

- [X] SMALL BUSINESS
- [ ] HUBZONE SMALL BUSINESS
- [ ] SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESS
- [ ] WOMEN-OWNED SMALL BUSINESS (WOSB) ELIGIBLE UNDER THE WOMEN-OWNED SMALL BUSINESS PROGRAM
- [ ] EDWOSB
- [ ] 8(A)

NAICS: 238330

SIZE STANDARD: $19 Million

11. DELIVERY FOR FOB DESTINATION UNLESS BLOCK IS MARKED [ ] SEE SCHEDULE

12. DISCOUNT TERMS

[ ] 13a. THIS CONTRACT IS A RATED ORDER UNDER DPAS (15 CFR 700)

13b. RATING: N/A

14. METHOD OF SOLICITATION: [X] RFQ [ ] IFB [ ] RFP

15. DELIVER TO CODE

See Delivery Schedule

16. ADMINISTERED BY CODE 00261

Department of Veterans Affairs
Network Contracting Office 21
6900 N. Pecos Road, Building 6
North Las Vegas
NV 89086

17a. CONTRACTOR/OFFEROR CODE FACILITY CODE

TELEPHONE NO. UEI: EFT:

[ ] 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER

18a. PAYMENT WILL BE MADE BY CODE

Department of Veterans Affairs
Financial Services Center
P.O. Box 149971

Austin TX 78714-9971

PHONE: FAX:

18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED [ ] SEE ADDENDUM

19. ITEM NO.	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
	See CONTINUATION Page				
	VAPIHCS Flooring Materials IDIQ * THIS IS A BRAND NAME ONLY REQUIREMENT* Submission of your response shall be received no later than August 31, 2026 at 1500 PDT at victoria.torres@va.gov. Any question or concerns regarding this solicitation should be forwarded in writing via email to the Point of Contact listed at Victoria Torres, Contract Specialist, victoria.torres@va.gov by August 24, 2026 at 1500 PDT.				

(Use Reverse and/or Attach Additional Sheets as Necessary)

25. ACCOUNTING AND APPROPRIATION DATA: See CONTINUATION Page

26. TOTAL AWARD AMOUNT (For Govt. Use Only)

[ ] 27a. SOLICITATION INCORPORATES BY REFERENCE FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA [X] ARE [ ] ARE NOT ATTACHED.

[ ] 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA [ ] ARE [ ] ARE NOT ATTACHED

[ ] 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN ______________ COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED

[ ] 29. AWARD OF CONTRACT: REF. ______________ OFFER DATED ______________. YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN IS ACCEPTED AS TO ITEMS:

30a. SIGNATURE OF OFFEROR/CONTRACTOR

30b. NAME AND TITLE OF SIGNER (TYPE OR PRINT)

30c. DATE SIGNED

31a. UNITED STATES OF AMERICA (SIGNATURE OF CONTRACTING OFFICER)

31b. NAME OF CONTRACTING OFFICER (TYPE OR PRINT)

31c. DATE SIGNED

Table of Contents

SECTION B - CONTINUATION OF SF 1449 BLOCKS

B.1 CONTRACT ADMINISTRATION DATA

1. Contract Administration: All contract administration matters will be handled by the following individuals:

a. CONTRACTOR:

b. GOVERNMENT: Contracting Officer 36C261

Department of Veterans Affairs

Network Contracting Office 21

6900 N. Pecos Road, Building 6

North Las Vegas

NV 89086

2. CONTRACTOR REMITTANCE ADDRESS: All payments by the Government to the contractor will be made in accordance with:

[X]	52.232-33, Payment by Electronic Funds Transfer—System For Award Management, or
[X]	52.232-36, Payment by Third Party

3. INVOICES: Invoices shall be submitted in arrears:

a. Quarterly []

b. Semi-Annually []

c. Other [X] Upon Delivery and Government Acceptance

4. GOVERNMENT INVOICE ADDRESS: All Invoices from the contractor shall be submitted electronically in accordance with VAAR Clause 852.232-72 Electronic Submission of Payment Requests. Invoicing shall be in accordance with the requirements of The Department of Veterans Affairs Financial Services Center (VAFSC). The latest information shall be used for invoicing and payments and may change during the period of performance of this acquisition. Current invoicing information is located at http://www.fsc.va.gov/einvoice.asp

ACKNOWLEDGMENT OF AMENDMENTS: The offeror acknowledges receipt of amendments to the Solicitation numbered and dated as follows:

AMENDMENT NO	DATE

STATEMENT OF WORK
459 VAPIHCS Flooring Materials

1.PURPOSE:
The purpose of this Indefinite Delivery Indefinite Quantity (IDIQ) Flooring Materials Contract is to establish a source for the supply and delivery of commercial-grade/ healthcare-grade flooring materials for facilities supported by the Veterans Affairs Pacific Islands Health Care System (VAPIHCS). This IDIQ Flooring Materials Contract covers materials only and does not include installation, removal, site preparation, or labor services.

2. SCOPE

The Contractor is required to provide brand name flooring materials. The contractor must be able to provide any base materials necessary to replace existing flooring. **Installation will not be required.**

Luxury Vinyl Plank (LVP)/Luxury Vinyl Tile (LVT) -MetroFlor Deja New San Marcos Oak Pumice Wash DN1445105
Must be Luxury Vinyl Plank (LVP) commercial-grade strength and waterproof properties for high traffic areas.
Must be a standard ASTM F1700 specification with Class III, Type B classification
Must be 9 x 60 in. Plank (228.6 x 1,524 mm) tile size to properly fit area dimensions.
Must have a wear layer thickness of 0.5mm 20 mil and overall thickness of 2.5 mm (0.098 in.)
Must have a Micro-Bevel Edge profile
Must meet ASTM E648 Critical Radiant Flux (Radiant Panel) Class I ≥ 0.45 W/Sq. cm. rating in accordance with the fire-test-response standard
Must meet ASTM F970 static load > 0.5 with static load of 0.005 in., 1,400 psi
Must meet ASTM D2047 Coefficient of Friction / Slip Resistance ≥ 0.6 (Dry)
Must meet ASTM D4060 Abrasion Resistance Average ≥ 20,000 cycles
Must pass ASTM tests for chemical resistance, residential indentation, and flexibility.
Must be complaint with Heat (ASTM F 1514) and Light (ASTM F 1515) color stability by color change < 8.
Must have finish design options including wood, abstract, and stone looks.
Must have an FX3 antimicrobial and floor protection finish.
Must meet the Manufacturer's compatibility guidelines (to preserve warranties)

Cove Base- Flexco 6" Wallflowers TS Rubber Base Cove 4' Gray 036 Base
Must meet ASTM F1861 – Resilient Wall Base Type TS, Group 1, Styles A & B
Must meet ASTM E648 (NFPA 253) – Critical Radiant Flux Class I, ≥ 0.45 W/cm^2

Must meet ASTM E84 – Flammability Class A
Must meet ASTM F925 – Chemical Resistance Excellent
Must meet ASTM F137 and ASTM F1515 – Flexibility Excellent/ Light Stability $\Delta E \leq 8$
Achieved NSF/ANSI 332 Level 1 Certification

Hard Set Adhesive-Prevail 3500 Hard-set Adhesive
Must be solvent free, acrylic adhesive
Must be compatible with homogeneous and heterogeneous sheet flooring, LVT, LVP
Must meet ATSM F2170: 80%<, ATSM F1869:6lbs< (moisture vapor emissions)
Must have 1 year unopened shelf life
Must meet ATSM F710 pH between 7.0-10.0, per ASTM F2170 or ASTM F1869 test standards
Must be maintained at 65° to85°F

Sheet Vinyl Flooring (Healthcare grade)-Mannington Resillient Sheet including BioSpec MD
Must be Homogenous and meet ASTM F1913 Sheet Vinyl Floor Covering without backing
Must pass Static Load (ASTM F970)
Must pass ASTM F925 tests for chemical resistance, residential indentation, and flexibility.
Must meet ASTM E648 Flooring Radiant Panel Must be< 0.007
Must pass Resistance to Mold/Mildew (ASTM G21/E2180)- PASSES
Must be compatible with Mannington Commercial Weld Rods/MCS-42 Chemical Seam Sealer/Mannington Seam Coater for high traffic areas
Must pass Resistance to Heat (ASTM FI514) passes < 8 Delta E Color Change
Must pass Smoke Density (ASTM E662) passes Class 1; 2: 0.45 watts/cm2
Must meet Flexibility (ASTM FI37) standards passes 1 1/2' Mandrel - No Crack/Break
Must be compatible with all BioSpec Accessories 1500 series. (weld rod, ideal base, wall base)

Carpet Tile (Commercial/Healthcare grade) -Mohawk
-Must meet modular carpet tile format 24”x24” and 12”x36” (if applicable)
- Must meet solution dyed nylon
- Must be high density tufted for dimensional stability
- Must be PVC free thermoplastic backing or equivalent
- Must meet ASTM E648 (class 1 or better) and ASTM E662 (smoke density)
-CRI Green Label Plus certification , low VOC emissions

Rubber Flooring or Rubber Tile -Mannington
-Must be commercial thermoset vulcanized rubber flooring
-Must be 18”x18”, 24”x24” or 4’x50’ sheet
-Must be slip resistant surface suitable for high traffic commercial and healthcare spaces
-Must be certified LOW VOC per LEED or FloorScore
-Must meet ASTM F1344, ASTM f1859
- Must meet ASTM E648 Critical Radiant Flux
- Must pass Smoke Density (ASTM E662)
- Must meet ASTM D2047 SCOF

Epoxy Floor Coatings
-Two-component, 100% solids epoxy coating for interior concrete floors.
-Minimum adhesion strength of 250 psi per ASTM D4541.
-Compressive strength ≥ 10,000 psi per ASTM D695.
-Abrasion resistance per ASTM D4060.
-Chemical resistance per ASTM D1308.
-Slip resistance meeting ANSI A326.3 where required.

-Compatible with concrete moisture testing per ASTM F1869 and ASTM F2170.
-Low VOC formulation compliant with applicable regulations.
-Available in standard colors with optional aggregate or flake system.

Vinyl Composition Tile (VCT):
-12” × 12”, 1/8” thick vinyl composition tile conforming to ASTM F1066, Class 2.
-Commercial-grade homogeneous construction.
-Meets ASTM E648 Class I critical radiant flux requirements.
-Dimensional stability per ASTM F2199 and indentation resistance per ASTM F970.
-FloorScore certified for low VOC emissions.
-Glue-down installation with moisture testing per ASTM F1869 or ASTM F2170.
-Available in manufacturer’s standard commercial color selections.

Specific manufacturer brand names or product models will be identified in individual delivery orders when required to match existing installations, ensure compatibility, maintain warranties, and meet facility operational requirements.

3. Contract Line Items

Luxury Vinyl Plank (LVP) /Luxury Vinyl Tile (LVT)

- Unit: SF
- Includes: LVP and/or LVT flooring, cove base, underlayment, adhesive, trims, reducers, (if required) and all materials required for installation. CLIN is for materials only.

Vinyl Flooring

- Unit: SF
- Includes: Sheet vinyl, adhesive, cove base, weld rods, underlayment edge trim, reducers, (if required), and all materials required for installation. CLIN is for materials only.

Carpet Tile

- Unit: SF
- Includes: Carpet tile, cove base, adhesive, transition strips, moisture barriers (if required), edge trims, and all materials required for installation. CLIN is for materials only.

Rubber Flooring

- Unit: SF
- Includes: Rubber flooring, cove base, adhesive, trims, reducers, (if required) and all materials required for installation. CLIN is for materials only.

Epoxy Floor Coatings

- Unit: SF
- Includes: Epoxy Floor Coatings, underlayment, adhesive, trims, reducers, and all materials required for installation. CLIN is for materials only.

Vinyl Composition Tile (VCT)

- Unit: SF
- Includes: flooring, underlayment, cove base, adhesive, trims, reducers, (if required) and all materials required for installation. CLIN is for materials only.

Freight / Delivery

- Unit: Job
- Includes: All shipping, handling, and delivery of materials to the delivery order location (if required).

4.2 IDIQ CEILING:

The IDIQ Ceiling for this contract is $1,500,000.00.
This amount represents the maximum cumulative value of all orders placed under this IDIQ contract.

4.3 Obligation of Funds

The IDIQ contract itself does not obligate funds. Funds will be obligated only upon issuance of individual delivery orders referring to this contract. Each delivery order will include its own accounting classification, funding citation, and total dollar amount.

5. ORDERING PROCEDURES

5.1 Delivery Orders

Authorized VA personnel will issue BPA calls specifying the contract line item.
Material type and description
Period of performance
Quantity required
Delivery location ***(see 7.2 geographic locations)***
Required delivery date

5.2 Funding

Delivery Orders below the micro purchase threshold of $15,000 will be paid by GPC. Orders above $15,000 can only be issued by a Contracting Officer through a funded delivery order.

6. PERIOD OF PERFORMANCE

Ordering Period 1: September 14, 2026, through September 13, 2027
Ordering Period 2: September 14, 2027, through September 13, 2028
Ordering Period 3:: September 14, 2028, through September 13, 2029
Ordering Period 4:: September 14, 2029, through September 13, 2030
Ordering Period 5:: September 14, 2030, through September 13, 2031

7. DELIVERY AND ACCEPTANCE

7.1 Delivery Schedule

Delivery locations will be specified in each delivery order. Deliveries for any Hawaiian Island locations will take place between **8:00am-4:00pm HST (see 7.2).**

Special instructions will be included in each call for Guam and American Samoa locations.

Materials are subject to inspection and acceptance at destination by the Government. The Contractor shall replace any rejected materials at no additional cost.

7.2 Geographic locations will include the following:

VAPIHCS 459 Patterson Rd. Honolulu, HI 96819

- **Bldg. 30, Ambulatory Care Clinic (ACC)**
- **Bldg. 32, Parking Structure (PRKG**
- **Bldg. 110, Community Living Center (CLC)**
- **Bldg. T1, E-Wing (EW)**
- **VA Warehouse 3375 Koapaka St Honolulu, HI 96819**
- **VA Community Based Outpatient Clinics (CBOC) including:**

Windward VA Clinic- 46-001 Kamehameha Hwy Ste 301 Kaneohe, HI 96744
Hilo VA Clinic- 45 Mohouli St. Hilo, HI 96720
Kona VA Clinic - 73-5618 Maiau St. Ste 200 Kailua-Kona,HI 96740
Maui VA Clinic - 203 Ho'ohana Street Kahului, HI 96732
Kauai VA Clinic - 4485 Pahe'e Street Ste 150 Lihue, HI 96766
Molokai VA Clinic - 604 Mauna Loa Hwy Kaunakakai, HI 96748

- **Guam VA Clinic- 498 Chalan Palasyo Agana Heights GU 96910-6427**
- **Faleomaveaga Eni Fa'aua'a Hunkin VA Clinic- Fiatele Teo Army Reserve Building Pago Pago, AS 96799**

8. INVOICING

Invoices shall reference:
Contract Number
Delivery Order Number
Contract Line Item
Description of flooring materials
Delivery date and location

Invoices shall be submitted through the VA Invoice Processing Platform (IPP) unless otherwise directed.

9. RECORDS MANAGEMENT REQUIREMENTS:

NARA Records Management Language for Contracts (May 2017):
https://www.archives.gov/records-mgmt/handbook/records-mgmt-language.html

RECORDS MANAGEMENT OBLIGATIONS

A. Applicability

This clause applies to all Contractors whose employees create, work with, or otherwise handle Federal records, as defined in Section B, regardless of the medium in which the record exists.

B. Definitions

"Federal Record" as defined in 44 U.S.C. § 3301, includes all recorded information, regardless of form or characteristics, made or received by a Federal agency under Federal law or in connection with the transaction of public business and preserved or appropriate for preservation by that agency or its legitimate successor as evidence of the organization, functions, policies, decisions, procedures, operations, or other activities of the United States Government or because of the informational value of data in them.

The term Federal record:
1. includes Department of Veteran's Affairs records.
2. does not include personal materials.
3. applies to records created, received, or maintained by Contractors pursuant to their VAPIHCS contract.
4. may include deliverables and documentation associated with deliverables.

C. Requirements

The following standard Items relate to records generated in executing this contract and should be included in a typical contract where records could possibly be created, maintained or dispositioned:

1. Contractor(s) shall comply with all applicable records management laws and regulations, as well as National Archives and Records Administration (NARA) records policies, including but not limited to the Federal Records Act (44 U.S.C. chs. 21, 29, 31, 33), NARA regulations at 36 CFR Chapter XII Subchapter B, and those policies associated with the safeguarding of records covered by the Privacy Act of 1974 (5 U.S.C. 552a). These policies include the preservation of all records, regardless of form or characteristics, mode of transmission, or state of completion.

2. In accordance with 36 CFR 1222.32, all data created for Government use and delivered to, or falling under the legal control of, the Government are Federal records subject to the provisions of 44 U.S.C. chapters 21, 29, 31, and 33, the Freedom of Information Act (FOIA) (5 U.S.C. 552), as amended, and the Privacy Act of 1974 (5 U.S.C. 552a), as amended and must be managed and scheduled for disposition only as permitted by statute or regulation.

3. In accordance with 36 CFR 1222.32, Contractor shall maintain all records created for Government use or created in the course of performing the contract and/or delivered to, or under the legal control of the Government and must be managed in accordance with Federal law. Electronic records and associated metadata must be accompanied by sufficient technical documentation to permit understanding and use of the records and data.

4. [FACILITY] and its contractors are responsible for preventing the alienation or unauthorized destruction of records, including all forms of mutilation. Records may not be removed from the legal custody of VAPIHCS or destroyed except for in accordance with the provisions of the agency records schedules and with the written concurrence of the Head of the Contracting Activity. Willful and unlawful destruction, damage or alienation of Federal records is subject to the fines and penalties imposed by 18 U.S.C. 2701.
In the event of any unlawful or accidental removal, defacing, alteration, or destruction of records, Contractor must report to VAPIHCS The agency must report promptly to NARA in accordance with 36 CFR 1230.

5. The Contractor(s) shall immediately notify the appropriate Contracting Officer upon discovery of any inadvertent or unauthorized disclosures of information, data, documentary materials, records or equipment. Disclosure of non-public information is limited to authorized personnel with a need-to-know as described in the SOW. The Contractor shall ensure that the appropriate personnel,

administrative, technical, and physical safeguards are established to ensure the security and confidentiality of this information, data, documentary material, records and/or equipment is properly protected. The Contractor shall not remove material from Government facilities or systems, or facilities or systems operated or maintained on the Government's behalf, without the express written permission of the Head of the Contracting Activity. When information, data, documentary material, records and/or equipment is no longer required, it shall be returned to VAPIHCS control or the Contractor must hold it until otherwise directed. Items returned to the Government shall be hand carried, mailed, emailed, or securely electronically transmitted to the Contracting Officer or address prescribed in the [contract vehicle]. Destruction of records is EXPRESSLY PROHIBITED unless in accordance with Paragraph (4).

6. The Contractor(s) is required to obtain the Contracting Officer's approval prior to engaging in any contractual relationship (sub-contractor) in support of this contract requiring the disclosure of information, documentary material and/or records generated under, or relating to, contracts. The Contractor (and any sub-contractor) is required to abide by Government and [FACILITY] guidance for protecting sensitive, proprietary information, classified, and controlled unclassified information.

7. The Contractor(s) shall only use Government IT equipment for purposes specifically tied to or authorized by the contract and in accordance with [FACILITY] policy.

8. The Contractor(s) shall not create or maintain any records containing any non-public [FACILITY] information that are not specifically tied to or authorized by the contract.

9. The Contractor(s) shall not retain, use, sell, or disseminate copies of any deliverable that contains information covered by the Privacy Act of 1974 or that which is generally protected from public disclosure by an exemption to the Freedom of Information Act.

10. The [FACILITY] owns the rights to all data and records produced as part of this contract. All deliverables under the contract are the property of the U.S. Government for which [FACILITY] shall have unlimited rights to use, dispose of, or disclose such data contained therein as it determines to be in the public interest. Any Contractor rights in the data or deliverables must be identified as required by FAR 52.227-11 through FAR 52.227-20.

11. Training. All Contractor employees assigned to this contract who create, work with, or otherwise handle records are required to take VHA-provided records management training. The Contractor is responsible for confirming training has been completed according to agency policies, including initial training and any annual or refresher training.

[Note: To the extent an agency requires contractors to complete records management training, the agency must provide the training to the contractor.]

B.2 PRICE/COST SCHEDULE

ITEM INFORMATION

ITEM NUMBER	DESCRIPTION OF SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0001	Luxury Vinyl Plank (LVP)/Luxury Vinyl Tile (LVT); Deja New San Marcos Oak Pumice Wash; DN1445105; Metroflor; Includes Hard Set Adhesive-Prevail 3500 Contract Period: Base POP Begin: 09-14-2026 POP End: 09-13-2027 PRINCIPAL NAICS CODE: 238330 - Flooring Contractors PRODUCT/SERVICE CODE: 7220 - Floor Coverings MANUFACTURER PART NUMBER (MPN): METROFLOR LOCAL STOCK NUMBER: METROFLOR	28,750.00	SF	____________________	____________________
0002	Cove Base; 6” Wallflowers TS Rubber Base Cove 4’ Gray 036 Base; Flexco Contract Period: Base POP Begin: 09-14-2026 POP End: 09-13-2027 PRINCIPAL NAICS CODE: 238330 - Flooring Contractors PRODUCT/SERVICE CODE: 7220 - Floor Coverings MANUFACTURER PART NUMBER (MPN): FLEXCO LOCAL STOCK NUMBER: FLEXCO	28,750.00	SF	____________________	____________________
0003	Sheet Vinyl Flooring (Healthcare grade); Resillient Sheet including BioSpec MD; Mannington Contract Period: Base POP Begin: 09-14-2026 POP End: 09-13-2027 PRINCIPAL NAICS CODE: 238330 - Flooring Contractors PRODUCT/SERVICE CODE: 7220 - Floor Coverings MANUFACTURER PART NUMBER (MPN): MANNINGTON LOCAL STOCK NUMBER: MANNINGTON	5,750.00	SF	____________________	____________________
0004	Carpet Tile (Commercial/Healthcare grade); Mohawk Contract Period: Base	1.00	SF	____________________	____________________

	POP Begin: 09-14-2026 POP End: 09-13-2027 PRINCIPAL NAICS CODE: 238330 - Flooring Contractors PRODUCT/SERVICE CODE: 7220 - Floor Coverings MANUFACTURER PART NUMBER (MPN): MOHAWK LOCAL STOCK NUMBER: MOHAWK				
0005	Rubber Flooring or Rubber Tile; Mannington Contract Period: Base POP Begin: 09-14-2026 POP End: 09-13-2027 PRINCIPAL NAICS CODE: 238330 - Flooring Contractors PRODUCT/SERVICE CODE: 7220 - Floor Coverings MANUFACTURER PART NUMBER (MPN): MANNINGTON LOCAL STOCK NUMBER: MANNINGTON	1.00	SF	______	______
0006	Epoxy Floor Coatings; Uzin Contract Period: Base POP Begin: 09-14-2026 POP End: 09-13-2027 PRINCIPAL NAICS CODE: 238330 - Flooring Contractors PRODUCT/SERVICE CODE: 7220 - Floor Coverings MANUFACTURER PART NUMBER (MPN): UZIN LOCAL STOCK NUMBER: UZIN	1.00	SF	______	______
0007	Vinyl Composition Tile (VCT); Armstrong Contract Period: Base POP Begin: 09-14-2026 POP End: 09-13-2027 PRINCIPAL NAICS CODE: 238330 - Flooring Contractors PRODUCT/SERVICE CODE: 7220 - Floor Coverings MANUFACTURER PART NUMBER (MPN): ARMSTRONG LOCAL STOCK NUMBER: ARMSTRONG	1.00	SF	______	______
0008	Freight / Delivery; All shipping, handling, and delivery of materials to the delivery order location (if required). CLIN will be priced at delivery order level. Contract Period: Base POP Begin: 09-14-2026	1.00	JB	______	______

	POP End: 09-13-2027 PRINCIPAL NAICS CODE: 238330 - Flooring Contractors PRODUCT/SERVICE CODE: 7220 - Floor Coverings MANUFACTURER PART NUMBER (MPN): N/A LOCAL STOCK NUMBER: N/A				
1001		28,750.00	SF	____________________	____________________
	Luxury Vinyl Plank (LVP)/Luxury Vinyl Tile (LVT); Deja New San Marcos Oak Pumice Wash; DN1445105; Metroflor; Includes Hard Set Adhesive-Prevail 3500 Contract Period: Option 1 POP Begin: 09-14-2027 POP End: 09-13-2028 PRINCIPAL NAICS CODE: 238330 - Flooring Contractors PRODUCT/SERVICE CODE: 7220 - Floor Coverings MANUFACTURER PART NUMBER (MPN): METROFLOR LOCAL STOCK NUMBER: METROFLOR				
1002		28,750.00	SF	____________________	____________________
	Cove Base; 6” Wallflowers TS Rubber Base Cove 4’ Gray 036 Base; Flexco Contract Period: Option 1 POP Begin: 09-14-2027 POP End: 09-13-2028 PRINCIPAL NAICS CODE: 238330 - Flooring Contractors PRODUCT/SERVICE CODE: 7220 - Floor Coverings MANUFACTURER PART NUMBER (MPN): FLEXCO LOCAL STOCK NUMBER: FLEXCO				
1003		5,750.00	SF	____________________	____________________
	Sheet Vinyl Flooring (Healthcare grade); Resillient Sheet including BioSpec MD; Mannington Contract Period: Option 1 POP Begin: 09-14-2027 POP End: 09-13-2028 PRINCIPAL NAICS CODE: 238330 - Flooring Contractors PRODUCT/SERVICE CODE: 7220 - Floor Coverings MANUFACTURER PART NUMBER (MPN): MANNINGTON LOCAL STOCK NUMBER: MANNINGTON				
1004		1.00	SF	____________________	____________________
	Carpet Tile (Commercial/Healthcare grade); Mohawk Contract Period: Option 1				

	POP Begin: 09-14-2027 POP End: 09-13-2028 PRINCIPAL NAICS CODE: 238330 - Flooring Contractors PRODUCT/SERVICE CODE: 7220 - Floor Coverings MANUFACTURER PART NUMBER (MPN): MOHAWK LOCAL STOCK NUMBER: MOHAWK				
1005	Rubber Flooring or Rubber Tile; Mannington Contract Period: Option 1 POP Begin: 09-14-2027 POP End: 09-13-2028 PRINCIPAL NAICS CODE: 238330 - Flooring Contractors PRODUCT/SERVICE CODE: 7220 - Floor Coverings MANUFACTURER PART NUMBER (MPN): MANNINGTON LOCAL STOCK NUMBER: MANNINGTON	1.00	SF	________________	________________
1006	Epoxy Floor Coatings; Uzin Contract Period: Option 1 POP Begin: 09-14-2027 POP End: 09-13-2028 PRINCIPAL NAICS CODE: 238330 - Flooring Contractors PRODUCT/SERVICE CODE: 7220 - Floor Coverings MANUFACTURER PART NUMBER (MPN): UZIN LOCAL STOCK NUMBER: UZIN	1.00	SF	________________	________________
1007	Vinyl Composition Tile (VCT); Armstrong Contract Period: Option 1 POP Begin: 09-14-2027 POP End: 09-13-2028 PRINCIPAL NAICS CODE: 238330 - Flooring Contractors PRODUCT/SERVICE CODE: 7220 - Floor Coverings MANUFACTURER PART NUMBER (MPN): ARMSTRONG LOCAL STOCK NUMBER: ARMSTRONG	1.00	SF	________________	________________
1008	Freight / Delivery; All shipping, handling, and delivery of materials to the delivery order location (if required). CLIN will be priced at delivery order level. Contract Period: Option 1 POP Begin: 09-14-2027	1.00	JB	________________	________________

POP End: 09-13-2028
PRINCIPAL NAICS CODE: 238330 - Flooring Contractors
PRODUCT/SERVICE CODE: 7220 - Floor Coverings
MANUFACTURER PART NUMBER (MPN): N/A
LOCAL STOCK NUMBER: N/A

2001	28,750.00	SF	____________________	____________________

Luxury Vinyl Plank (LVP)/Luxury Vinyl Tile (LVT); Deja New San Marcos Oak Pumice Wash; DN1445105; Metroflor; Includes Hard Set Adhesive-Prevail 3500
Contract Period: Option 2
POP Begin: 09-14-2028
POP End: 09-13-2029
PRINCIPAL NAICS CODE: 238330 - Flooring Contractors
PRODUCT/SERVICE CODE: 7220 - Floor Coverings
MANUFACTURER PART NUMBER (MPN): METROFLOR
LOCAL STOCK NUMBER: METROFLOR

2002	28,750.00	SF	____________________	____________________

Cove Base; 6” Wallflowers TS Rubber Base Cove 4’ Gray 036 Base; Flexco
Contract Period: Option 2
POP Begin: 09-14-2028
POP End: 09-13-2029
PRINCIPAL NAICS CODE: 238330 - Flooring Contractors
PRODUCT/SERVICE CODE: 7220 - Floor Coverings
MANUFACTURER PART NUMBER (MPN): FLEXCO
LOCAL STOCK NUMBER: FLEXCO

2003	5,750.00	SF	____________________	____________________

Sheet Vinyl Flooring (Healthcare grade); Resillient Sheet including BioSpec MD; Mannington
Contract Period: Option 2
POP Begin: 09-14-2028
POP End: 09-13-2029
PRINCIPAL NAICS CODE: 238330 - Flooring Contractors
PRODUCT/SERVICE CODE: 7220 - Floor Coverings
MANUFACTURER PART NUMBER (MPN): MANNINGTON
LOCAL STOCK NUMBER: MANNINGTON

2004	1.00	SF	____________________	____________________

Carpet Tile (Commercial/Healthcare grade); Mohawk
Contract Period: Option 2

POP Begin: 09-14-2028
POP End: 09-13-2029
PRINCIPAL NAICS CODE: 238330 - Flooring Contractors
PRODUCT/SERVICE CODE: 7220 - Floor Coverings
MANUFACTURER PART NUMBER (MPN): MOHAWK
LOCAL STOCK NUMBER: MOHAWK

2005 1.00 SF ____________ ____________

Rubber Flooring or Rubber Tile; Mannington
Contract Period: Option 2
POP Begin: 09-14-2028
POP End: 09-13-2029
PRINCIPAL NAICS CODE: 238330 - Flooring Contractors
PRODUCT/SERVICE CODE: 7220 - Floor Coverings
MANUFACTURER PART NUMBER (MPN): MANNINGTON
LOCAL STOCK NUMBER: MANNINGTON

2006 1.00 SF ____________ ____________

Epoxy Floor Coatings; Uzin
Contract Period: Option 2
POP Begin: 09-14-2028
POP End: 09-13-2029
PRINCIPAL NAICS CODE: 238330 - Flooring Contractors
PRODUCT/SERVICE CODE: 7220 - Floor Coverings
MANUFACTURER PART NUMBER (MPN): UZIN
LOCAL STOCK NUMBER: UZIN

2007 1.00 SF ____________ ____________

Vinyl Composition Tile (VCT); Armstrong
Contract Period: Option 2
POP Begin: 09-14-2028
POP End: 09-13-2029
PRINCIPAL NAICS CODE: 238330 - Flooring Contractors
PRODUCT/SERVICE CODE: 7220 - Floor Coverings
MANUFACTURER PART NUMBER (MPN): ARMSTRONG
LOCAL STOCK NUMBER: ARMSTRONG

2008 1.00 JB ____________ ____________

Freight / Delivery; All shipping, handling, and delivery of materials to the delivery order location (if required). CLIN will be priced at delivery order level.
Contract Period: Option 2
POP Begin: 09-14-2028

POP End: 09-13-2029
PRINCIPAL NAICS CODE: 238330 - Flooring Contractors
PRODUCT/SERVICE CODE: 7220 - Floor Coverings
MANUFACTURER PART NUMBER (MPN): N/A
LOCAL STOCK NUMBER: N/A

3001		28,750.00	SF	________________	________________

Luxury Vinyl Plank (LVP)/Luxury Vinyl Tile (LVT); Deja New San Marcos Oak Pumice Wash; DN1445105; Metroflor; Includes Hard Set Adhesive-Prevail 3500
Contract Period: Option 3
POP Begin: 09-14-2029
POP End: 09-13-2030
PRINCIPAL NAICS CODE: 238330 - Flooring Contractors
PRODUCT/SERVICE CODE: 7220 - Floor Coverings
MANUFACTURER PART NUMBER (MPN): METROFLOR
LOCAL STOCK NUMBER: METROFLOR

3002		28,750.00	SF	________________	________________

Cove Base; 6” Wallflowers TS Rubber Base Cove 4’ Gray 036 Base; Flexco
Contract Period: Option 3
POP Begin: 09-14-2029
POP End: 09-13-2030
PRINCIPAL NAICS CODE: 238330 - Flooring Contractors
PRODUCT/SERVICE CODE: 7220 - Floor Coverings
MANUFACTURER PART NUMBER (MPN): FLEXCO
LOCAL STOCK NUMBER: FLEXCO

3003		5,750.00	SF	________________	________________

Sheet Vinyl Flooring (Healthcare grade); Resillient Sheet including BioSpec MD; Mannington
Contract Period: Option 3
POP Begin: 09-14-2029
POP End: 09-13-2030
PRINCIPAL NAICS CODE: 238330 - Flooring Contractors
PRODUCT/SERVICE CODE: 7220 - Floor Coverings
MANUFACTURER PART NUMBER (MPN): MANNINGTON
LOCAL STOCK NUMBER: MANNINGTON

3004		1.00	SF	________________	________________

Carpet Tile (Commercial/Healthcare grade); Mohawk
Contract Period: Option 3

	POP Begin: 09-14-2029 POP End: 09-13-2030 PRINCIPAL NAICS CODE: 238330 - Flooring Contractors PRODUCT/SERVICE CODE: 7220 - Floor Coverings MANUFACTURER PART NUMBER (MPN): MOHAWK LOCAL STOCK NUMBER: MOHAWK				
3005		1.00	SF		
	Rubber Flooring or Rubber Tile; Mannington Contract Period: Option 3 POP Begin: 09-14-2029 POP End: 09-13-2030 PRINCIPAL NAICS CODE: 238330 - Flooring Contractors PRODUCT/SERVICE CODE: 7220 - Floor Coverings MANUFACTURER PART NUMBER (MPN): MANNINGTON LOCAL STOCK NUMBER: MANNINGTON				
3006		1.00	SF		
	Epoxy Floor Coatings; Uzin Contract Period: Option 3 POP Begin: 09-14-2029 POP End: 09-13-2030 PRINCIPAL NAICS CODE: 238330 - Flooring Contractors PRODUCT/SERVICE CODE: 7220 - Floor Coverings MANUFACTURER PART NUMBER (MPN): UZIN LOCAL STOCK NUMBER: UZIN				
3007		1.00	SF		
	Vinyl Composition Tile (VCT); Armstrong Contract Period: Option 3 POP Begin: 09-14-2029 POP End: 09-13-2030 PRINCIPAL NAICS CODE: 238330 - Flooring Contractors PRODUCT/SERVICE CODE: 7220 - Floor Coverings MANUFACTURER PART NUMBER (MPN): ARMSTRONG LOCAL STOCK NUMBER: ARMSTRONG				
3008		1.00	JB		
	Freight / Delivery; All shipping, handling, and delivery of materials to the delivery order location (if required). CLIN will be priced at delivery order level. Contract Period: Option 3 POP Begin: 09-14-2029				

	POP End: 09-13-2030 PRINCIPAL NAICS CODE: 238330 - Flooring Contractors PRODUCT/SERVICE CODE: 7220 - Floor Coverings MANUFACTURER PART NUMBER (MPN): N/A LOCAL STOCK NUMBER: N/A			
4001	28,750.00	SF	____________________	____________________
	Luxury Vinyl Plank (LVP)/Luxury Vinyl Tile (LVT); Deja New San Marcos Oak Pumice Wash; DN1445105; Metroflor; Includes Hard Set Adhesive-Prevail 3500 Contract Period: Option 4 POP Begin: 09-14-2030 POP End: 09-13-2031 PRINCIPAL NAICS CODE: 238330 - Flooring Contractors PRODUCT/SERVICE CODE: 7220 - Floor Coverings MANUFACTURER PART NUMBER (MPN): METROFLOR LOCAL STOCK NUMBER: METROFLOR			
4002	28,750.00	SF	____________________	____________________
	Cove Base; 6” Wallflowers TS Rubber Base Cove 4’ Gray 036 Base; Flexco Contract Period: Option 4 POP Begin: 09-14-2030 POP End: 09-13-2031 PRINCIPAL NAICS CODE: 238330 - Flooring Contractors PRODUCT/SERVICE CODE: 7220 - Floor Coverings MANUFACTURER PART NUMBER (MPN): FLEXCO LOCAL STOCK NUMBER: FLEXCO			
4003	5,750.00	SF	____________________	____________________
	Sheet Vinyl Flooring (Healthcare grade); Resillient Sheet including BioSpec MD; Mannington Contract Period: Option 4 POP Begin: 09-14-2030 POP End: 09-13-2031 PRINCIPAL NAICS CODE: 238330 - Flooring Contractors PRODUCT/SERVICE CODE: 7220 - Floor Coverings MANUFACTURER PART NUMBER (MPN): MANNINGTON LOCAL STOCK NUMBER: MANNINGTON			
4004	1.00	SF	____________________	____________________
	Carpet Tile (Commercial/Healthcare grade); Mohawk Contract Period: Option 4			

POP Begin: 09-14-2030
POP End: 09-13-2031
PRINCIPAL NAICS CODE: 238330 - Flooring Contractors
PRODUCT/SERVICE CODE: 7220 - Floor Coverings
MANUFACTURER PART NUMBER (MPN): MOHAWK
LOCAL STOCK NUMBER: MOHAWK

4005		1.00	SF	______________	______________

Rubber Flooring or Rubber Tile; Mannington
Contract Period: Option 4
POP Begin: 09-14-2030
POP End: 09-13-2031
PRINCIPAL NAICS CODE: 238330 - Flooring Contractors
PRODUCT/SERVICE CODE: 7220 - Floor Coverings
MANUFACTURER PART NUMBER (MPN): MANNINGTON
LOCAL STOCK NUMBER: MANNINGTON

4006		1.00	SF	______________	______________

Epoxy Floor Coatings; Uzin
Contract Period: Option 4
POP Begin: 09-14-2030
POP End: 09-13-2031
PRINCIPAL NAICS CODE: 238330 - Flooring Contractors
PRODUCT/SERVICE CODE: 7220 - Floor Coverings
MANUFACTURER PART NUMBER (MPN): UZIN
LOCAL STOCK NUMBER: UZIN

4007		1.00	SF	______________	______________

Vinyl Composition Tile (VCT); Armstrong
Contract Period: Option 4
POP Begin: 09-14-2030
POP End: 09-13-2031
PRINCIPAL NAICS CODE: 238330 - Flooring Contractors
PRODUCT/SERVICE CODE: 7220 - Floor Coverings
MANUFACTURER PART NUMBER (MPN): ARMSTRONG
LOCAL STOCK NUMBER: ARMSTRONG

4008		1.00	JB	______________	______________

Freight / Delivery; All shipping, handling, and delivery of materials to the delivery order location (if required). CLIN will be priced at delivery order level.
Contract Period: Option 4
POP Begin: 09-14-2030

POP End: 09-13-2031
PRINCIPAL NAICS CODE: 238330 - Flooring Contractors
PRODUCT/SERVICE CODE: 7220 - Floor Coverings
MANUFACTURER PART NUMBER (MPN): N/A
LOCAL STOCK NUMBER: N/A

GRAND TOTAL	________________

The guaranteed minimum award amount for this contract is $100.00. The maximum aggregate value of orders that can be placed under this contract is $1,500,000. The Government does not guarantee that it will place any orders under this contract in excess of the guaranteed minimum award amount.

B.3 DELIVERY SCHEDULE

ITEM NUMBER		SHIPPING INFORMATION	QUANTITY	DELIVERY DATE
0001	SHIP TO:	VA Pacific Islands Health Care System See Delivery Order for Delivery Address	28,750.00	
	INSTRUCTIONS:	Please indicate delivery timeline in quotation.		
	FOB:	DESTINATION		
0002	SHIP TO:	VA Pacific Islands Health Care System See Delivery Order for Delivery Address	28,750.00	
	INSTRUCTIONS:	Please indicate delivery timeline in quotation.		
	FOB:	DESTINATION		
0003	SHIP TO:	VA Pacific Islands Health Care System See Delivery Order for Delivery Address	5,750.00	
	INSTRUCTIONS:	Please indicate delivery		

		timeline in quotation.	
	FOB:	DESTINATION	
0004	SHIP TO:	VA Pacific Islands Health Care System See Delivery Order for Delivery Address	1.00
	INSTRUCTIONS:	Please indicate delivery timeline in quotation.	
	FOB:	DESTINATION	
0005	SHIP TO:	VA Pacific Islands Health Care System See Delivery Order for Delivery Address	1.00
	INSTRUCTIONS:	Please indicate delivery timeline in quotation.	
	FOB:	DESTINATION	
0006	SHIP TO:	VA Pacific Islands Health Care System See Delivery Order for Delivery Address	1.00
	INSTRUCTIONS:	Please indicate delivery timeline in quotation.	
	FOB:	DESTINATION	
0007	SHIP TO:	VA Pacific Islands Health Care System See Delivery Order for Delivery Address	1.00
	INSTRUCTIONS:	Please indicate delivery timeline in quotation.	
	FOB:	DESTINATION	
0008	SHIP TO:	VA Pacific Islands Health Care System See Delivery Order for Delivery Address	1.00
	INSTRUCTIONS:	Please indicate delivery timeline in quotation.	

	FOB:	DESTINATION	
1001	SHIP TO:	VA Pacific Islands Health Care System See Delivery Order for Delivery Address	28,750.00
	INSTRUCTIONS:	Please indicate delivery timeline in quotation.	
	FOB:	DESTINATION	
1002	SHIP TO:	VA Pacific Islands Health Care System See Delivery Order for Delivery Address	28,750.00
	INSTRUCTIONS:	Please indicate delivery timeline in quotation.	
	FOB:	DESTINATION	
1003	SHIP TO:	VA Pacific Islands Health Care System See Delivery Order for Delivery Address	5,750.00
	INSTRUCTIONS:	Please indicate delivery timeline in quotation.	
	FOB:	DESTINATION	
1004	SHIP TO:	VA Pacific Islands Health Care System See Delivery Order for Delivery Address	1.00
	INSTRUCTIONS:	Please indicate delivery timeline in quotation.	
	FOB:	DESTINATION	
1005	SHIP TO:	VA Pacific Islands Health Care System See Delivery Order for Delivery Address	1.00
	INSTRUCTIONS:	Please indicate delivery timeline in quotation.	
	FOB:	DESTINATION	

1006	SHIP TO:	VA Pacific Islands Health Care System See Delivery Order for Delivery Address	1.00
	INSTRUCTIONS:	Please indicate delivery timeline in quotation.	
	FOB:	DESTINATION	
1007	SHIP TO:	VA Pacific Islands Health Care System See Delivery Order for Delivery Address	1.00
	INSTRUCTIONS:	Please indicate delivery timeline in quotation.	
	FOB:	DESTINATION	
1008	SHIP TO:	VA Pacific Islands Health Care System See Delivery Order for Delivery Address	1.00
	INSTRUCTIONS:	Please indicate delivery timeline in quotation.	
	FOB:	DESTINATION	
2001	SHIP TO:	VA Pacific Islands Health Care System See Delivery Order for Delivery Address	28,750.00
	INSTRUCTIONS:	Please indicate delivery timeline in quotation.	
	FOB:	DESTINATION	
2002	SHIP TO:	VA Pacific Islands Health Care System See Delivery Order for Delivery Address	28,750.00
	INSTRUCTIONS:	Please indicate delivery timeline in quotation.	
	FOB:	DESTINATION	
2003	SHIP TO:	VA Pacific Islands Health Care System	5,750.00

		See Delivery Order for Delivery Address	
	INSTRUCTIONS:	Please indicate delivery timeline in quotation.	
	FOB:	DESTINATION	
2004	SHIP TO:	VA Pacific Islands Health Care System See Delivery Order for Delivery Address	1.00
	INSTRUCTIONS:	Please indicate delivery timeline in quotation.	
	FOB:	DESTINATION	
2005	SHIP TO:	VA Pacific Islands Health Care System See Delivery Order for Delivery Address	1.00
	INSTRUCTIONS:	Please indicate delivery timeline in quotation.	
	FOB:	DESTINATION	
2006	SHIP TO:	VA Pacific Islands Health Care System See Delivery Order for Delivery Address	1.00
	INSTRUCTIONS:	Please indicate delivery timeline in quotation.	
	FOB:	DESTINATION	
2007	SHIP TO:	VA Pacific Islands Health Care System See Delivery Order for Delivery Address	1.00
	INSTRUCTIONS:	Please indicate delivery timeline in quotation.	
	FOB:	DESTINATION	
2008	SHIP TO:	VA Pacific Islands Health Care System See Delivery Order for Delivery Address	1.00

	INSTRUCTIONS:	Please indicate delivery timeline in quotation.	
	FOB:	DESTINATION	
3001	SHIP TO:	VA Pacific Islands Health Care System See Delivery Order for Delivery Address	28,750.00
	INSTRUCTIONS:	Please indicate delivery timeline in quotation.	
	FOB:	DESTINATION	
3002	SHIP TO:	VA Pacific Islands Health Care System See Delivery Order for Delivery Address	28,750.00
	INSTRUCTIONS:	Please indicate delivery timeline in quotation.	
	FOB:	DESTINATION	
3003	SHIP TO:	VA Pacific Islands Health Care System See Delivery Order for Delivery Address	5,750.00
	INSTRUCTIONS:	Please indicate delivery timeline in quotation.	
	FOB:	DESTINATION	
3004	SHIP TO:	VA Pacific Islands Health Care System See Delivery Order for Delivery Address	1.00
	INSTRUCTIONS:	Please indicate delivery timeline in quotation.	
	FOB:	DESTINATION	
3005	SHIP TO:	VA Pacific Islands Health Care System See Delivery Order for Delivery Address	1.00

	INSTRUCTIONS:	Please indicate delivery timeline in quotation.	
	FOB:	DESTINATION	
3006	SHIP TO:	VA Pacific Islands Health Care System See Delivery Order for Delivery Address	1.00
	INSTRUCTIONS:	Please indicate delivery timeline in quotation.	
	FOB:	DESTINATION	
3007	SHIP TO:	VA Pacific Islands Health Care System See Delivery Order for Delivery Address	1.00
	INSTRUCTIONS:	Please indicate delivery timeline in quotation.	
	FOB:	DESTINATION	
3008	SHIP TO:	VA Pacific Islands Health Care System See Delivery Order for Delivery Address	1.00
	INSTRUCTIONS:	Please indicate delivery timeline in quotation.	
	FOB:	DESTINATION	
4001	SHIP TO:	VA Pacific Islands Health Care System See Delivery Order for Delivery Address	28,750.00
	INSTRUCTIONS:	Please indicate delivery timeline in quotation.	
	FOB:	DESTINATION	
4002	SHIP TO:	VA Pacific Islands Health Care System See Delivery Order for Delivery Address	28,750.00
	INSTRUCTIONS:	Please indicate delivery timeline in quotation.	

	FOB:	DESTINATION	
4003	SHIP TO:	VA Pacific Islands Health Care System See Delivery Order for Delivery Address	5,750.00
	INSTRUCTIONS:	Please indicate delivery timeline in quotation.	
	FOB:	DESTINATION	
4004	SHIP TO:	VA Pacific Islands Health Care System See Delivery Order for Delivery Address	1.00
	INSTRUCTIONS:	Please indicate delivery timeline in quotation.	
	FOB:	DESTINATION	
4005	SHIP TO:	VA Pacific Islands Health Care System See Delivery Order for Delivery Address	1.00
	INSTRUCTIONS:	Please indicate delivery timeline in quotation.	
	FOB:	DESTINATION	
4006	SHIP TO:	VA Pacific Islands Health Care System See Delivery Order for Delivery Address	1.00
	INSTRUCTIONS:	Please indicate delivery timeline in quotation.	
	FOB:	DESTINATION	
4007	SHIP TO:	VA Pacific Islands Health Care System See Delivery Order for Delivery Address	1.00
	INSTRUCTIONS:	Please indicate delivery timeline in quotation.	
	FOB:	DESTINATION	

4008	SHIP TO:	VA Pacific Islands Health Care System See Delivery Order for Delivery Address	1.00
	INSTRUCTIONS:	Please indicate delivery timeline in quotation.	
	FOB:	DESTINATION	

SECTION C - CONTRACT CLAUSES

C.1 52.212-4 CONTRACT TERMS AND CONDITIONS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (OCT 2025) (DEVIATION)

(a) *Definitions*. The clause at Federal Acquisition Regulation (FAR) 52.202-1, Definitions, is incorporated by reference.

(b) *Inspection/Acceptance.* The Contractor shall only tender for acceptance those items that conform to the requirements of this contract. The Government reserves the right to inspect or test any supplies or services that have been tendered for acceptance. The Government may require repair or replacement of nonconforming supplies or reperformance of nonconforming services at no increase in contract price. If repair/replacement or reperformance will not correct the defects or is not possible, the Government may seek an equitable price reduction or adequate consideration for acceptance of nonconforming supplies or services. The Government must exercise its post acceptance rights—

(1) Within a reasonable time after the defect was discovered or should have been discovered; and

(2) Before any substantial change occurs in the condition of the item, unless the change is due to the defect in the item.

(c) *Assignment.* The Contractor or its assignee may assign its rights to receive payment due as a result of performance of this contract to a bank, trust company, or other financing institution, including any Federal lending agency in accordance with the Assignment of Claims Act (31 U.S.C. 3727). However, when a third party makes payment (e.g., use of the Governmentwide commercial purchase card), the Contractor may not assign its rights to receive payment under this contract.

(d) *Changes.* Changes in the terms and conditions of this contract may be made only by written agreement of the parties.

(e) *Disputes*. This contract is subject to 41 U.S.C. chapter 71, Contract Disputes. Failure of the parties to this contract to reach agreement on any request for equitable adjustment, claim, appeal or action arising under or relating to this contract shall be a dispute to be resolved in accordance with the clause FAR 52.233-1, Disputes, which is incorporated in this contract by reference. The Contractor shall proceed diligently with performance of this contract, pending final resolution of any dispute arising under the contract.

(f) *Excusable delays.* The Contractor shall be liable for default unless nonperformance is caused by an occurrence beyond the reasonable control of the Contractor and without its fault or negligence. Examples of occurrences include acts of God or the public enemy, acts of the Government in either its sovereign or contractual capacity, fires, floods, epidemics, quarantine restrictions, strikes, unusually severe weather, and delays of common carriers. When an excusable delay occurs, the Contractor shall—

(1) Notify the Contracting Officer in writing as soon as possible;

(2) Remedy the delay as quickly as possible; and

(3) Notify the Contracting Officer when the occurrence is over.

(g) *Invoice.* The Government will handle invoices according to the Prompt Payment Act (31 U.S.C. 3903) and 5 CFR part 1315. The Contractor shall submit invoices to the address designated in the contract to receive invoices. An invoice must include the information required by 5 CFR part 1315.9(b).

(h) *Patent indemnity.* The Contractor shall indemnify the Government and its officers, employees, and agents against liability, including costs, for actual or alleged direct or contributory infringement of, or inducement to infringe, any United States or foreign patent, trademark, or copyright, arising out of the performance of this contract, provided the Contractor is reasonably notified of such claims and proceedings.

(i) *Payment*—

(1) *Items accepted.* Payment shall be made for items accepted by the Government that have been delivered to the delivery destinations set forth in this contract.

(2) *Prompt payment.* The Government will make payment in accordance with the Prompt Payment Act (31 U.S.C. 3903) and prompt payment regulations at 5 CFR part 1315.

(3) *Discount.* In connection with any discount offered for early payment, time shall be computed from the date of the invoice. For the purpose of computing the discount earned, payment shall be considered to have been made on the date that appears on the payment check or the specified payment date if an electronic funds transfer payment is made.

(4) *Overpayments.* If the Contractor becomes aware of a duplicate contract financing or invoice payment or that the Government has otherwise overpaid on a contract financing or invoice payment, the Contractor shall—

(i) Remit the overpayment amount to the payment office cited in the contract along with a description of the overpayment including the—

(A) Circumstances of the overpayment (e.g., duplicate payment, erroneous payment, liquidation errors, date(s) of overpayment);

(B) Affected contract number and delivery order number, if applicable;

(C) Affected line item or subline item, if applicable;

(D) Contractor point of contact; and

(ii) Provide a copy of the remittance and supporting documentation to the Contracting Officer.

(5) *Interest.*

(i) All amounts that become payable by the Contractor to the Government under this contract shall bear simple interest from the date due until paid unless paid within 30 days of becoming due. The interest rate shall be the interest rate established by the Secretary of the

Treasury as provided in 41 U.S.C. 7109, which is applicable to the period in which the amount becomes due, as provided in (i)(6)(v) of this clause, and then at the rate applicable for each six-month period as fixed by the Secretary until the amount is paid.

(ii) The Government may issue a demand for payment to the Contractor upon finding a debt is due under the contract.

(iii) *Final decisions.* The Contracting Officer will issue a final decision as required by FAR part 33 if—

(A) The Contracting Officer and the Contractor are unable to reach agreement on the existence or amount of a debt within 30 days;

(B) The Contractor fails to liquidate a debt previously demanded by the Contracting Officer within the timeline specified in the demand for payment unless the amounts were not repaid because the Contractor has requested an installment payment agreement; or

(C) The Contractor requests a deferment of collection on a debt previously demanded by the Contracting Officer (see FAR part 32).

(iv) If a demand for payment was previously issued for the debt, the demand for payment included in the final decision shall identify the same due date as the original demand for payment.

(v) Amounts shall be due at the earliest of the following dates:

(A) The date fixed under this contract.

(B) The date of the first written demand for payment, including any demand for payment resulting from a termination for cause.

(vi) The interest charge shall be computed for the actual number of calendar days involved beginning on the due date and ending on-

(A) The date on which the designated office receives payment from the Contractor;

(B) The date of issuance of a Government check to the Contractor from which an amount otherwise payable has been withheld as a credit against the contract debt; or

(C) The date on which an amount withheld and applied to the contract debt would otherwise have become payable to the Contractor.

(vii) The interest charge made under this clause may be reduced under the procedures for interest credits prescribed in FAR part 32 in effect on the date of this contract.

(j) *Risk of loss.* Unless the contract specifically provides otherwise, risk of loss or damage to the supplies provided under this contract shall remain with the Contractor until, and shall pass to the Government upon—

(1) Delivery of the supplies to a carrier, if transportation is f.o.b. origin; or

(2) Delivery of the supplies to the Government at the destination specified in the contract, if transportation is f.o.b. destination.

(k) *Taxes.* The contract price includes all applicable Federal, State, and local taxes and duties.

(l) *Termination for the Government's convenience.* The Government reserves the right to terminate this contract, or any part hereof, for its sole convenience. In the event of such termination, the Contractor shall immediately stop all work and shall immediately cause any and all of its suppliers and subcontractors to cease work. Subject to the terms of this contract, the Contractor shall be paid a percentage of the contract price reflecting the percentage of the work performed prior to the notice of termination, plus reasonable charges the Contractor can demonstrate to the satisfaction of the Government using its standard record keeping system, have resulted from the termination. The Contractor shall not be required to comply with the cost accounting standards or contract cost principles for this purpose. This paragraph does not give the Government any right to audit the Contractor's records. The Contractor shall not be paid for any work performed or costs incurred which reasonably could have been avoided.

(m) *Termination for cause.* The Government may terminate this contract, or any part hereof, for cause in the event of any default by the Contractor, or if the Contractor fails to comply with any contract terms and conditions, or fails to provide the Government, upon request, with adequate assurances of future performance. The Government will send a cure notice to the Contractor, unless the reason for the termination is late delivery. In the event of termination for cause, the Government shall not be liable to the Contractor for any amount for supplies or services not accepted, and the Contractor shall be liable to the Government for any and all rights and remedies provided by law. If it is determined that the Government improperly terminated this contract for default, such termination shall be deemed a termination for convenience.

(n) *Title.* Unless specified elsewhere in this contract, title to items furnished under this contract shall pass to the Government upon acceptance, regardless of when or where the Government takes physical possession.

(o) *Warranty.* The Contractor warrants and implies that the items delivered under this contract are merchantable and fit for use for the particular purpose described in this contract.

(p) *Limitation of liability.* Except as otherwise provided by an express warranty, the Contractor will not be liable to the Government for consequential damages resulting from any defect or deficiencies in accepted items.

(q) *Compliance with laws unique to Government contracts.* The Contractor agrees to comply with 31 U.S.C. 1352 relating to limitations on the use of appropriated funds to influence certain Federal contracts; 40 U.S.C. chapter 37, Contract Work Hours and Safety Standards; 41 U.S.C. chapter 87, Kickbacks; 49 U.S.C. 40118, Government-financed air transportation; and 41 U.S.C. chapter 21 relating to procurement integrity.

(r) *Order of precedence.* Any inconsistencies in this solicitation or contract shall be resolved by giving precedence in the following order:

(1) The schedule of supplies/services.

(2) The Disputes, Payments, Invoice, Compliance with Laws Unique to Government Contracts, and Unauthorized Obligations paragraphs of this clause;

(3) Other contract clauses incorporated in the solicitation or contract;

(4) Addenda to this solicitation or contract,

(5) Solicitation provisions incorporated in the solicitation.

(6) Other paragraphs of this clause.

(7) Other documents, exhibits, and attachments; and

(8) The specification.

(s) *Unauthorized obligations*.

(1) Except as stated in paragraph (s)(2) of this clause, when any supply or service acquired under this contract is subject to any End User License Agreement (EULA), Terms of Service (TOS), or similar legal instrument or agreement, that includes any clause requiring the Government to indemnify the Contractor or any person or entity for damages, costs, fees, or any other loss or liability that would create an Anti-Deficiency Act violation (31 U.S.C. 1341), the following shall govern:

(i) Any such clause is unenforceable against the Government.

(ii) Neither the Government nor any Government-authorized end user shall be deemed to have agreed to such clause by virtue of it appearing in the EULA, TOS, or similar legal instrument or agreement. If the EULA, TOS, or similar legal instrument or agreement is invoked through an “I agree” click box or other comparable mechanism (e.g., “click-wrap” or “browse-wrap” agreements), execution does not bind the Government or any Government authorized end user to such clause.

(iii) Any such clause is deemed to be stricken from the EULA, TOS, or similar legal instrument or agreement.

(2) Paragraph (s)(1) of this clause does not apply to indemnification by the Government that is expressly authorized by statute and specifically authorized under applicable agency regulations and procedures.

(t) *Comptroller General examination of record*. This paragraph applies if this contract was awarded using other than sealed bid procedures and is in excess of the simplified acquisition threshold on the date of award of this contract.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor’s directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices, at all reasonable times, the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR part 4, longer period

required by statute, or periods specified in other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This clause does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(u) *Incorporation by reference*. The Contractor's representations and certifications, including those completed electronically via the System for Award Management (SAM), are incorporated by reference into the contract.

(End of Clause)

ADDENDUM to FAR 52.212-4 CONTRACT TERMS AND CONDITIONS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

Clauses that are incorporated by reference (by Citation Number, Title, and Date), have the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available.

The following clauses are incorporated into 52.212-4 as an addendum to this contract:

C.2 52.209-6 Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (JAN 2025) (DEVIATION NOV 2025)

(a) *Definitions*. As used in this provision—

Administrative proceeding means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (*e.g.*, Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

Federal contracts and grants with total value greater than $10,000,000 means—

(1) The total value of all current, active contracts and grants, including all priced options; and

(2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

Principal means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (*e.g.*, general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror □ has □ does not have current active Federal contracts and grants with total value greater than $10,000,000.

(c) If the offeror checked "has" in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

(i) In a criminal proceeding, a conviction.

(ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of $5,000 or more.

(iii) In an administrative proceeding, a finding of fault and liability that results in–

(A) The payment of a monetary fine or penalty of $5,000 or more; or

(B) The payment of a reimbursement, restitution, or damages in excess of $100,000.

(iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.

(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIIS as required through maintaining an active registration in the System for Award Management, which can be accessed via https://www.sam.gov (see 52.204-7).

(End of Provision)

C.3 52.209-9 UPDATES OF PUBLICLY AVAILABLE INFORMATION REGARDING RESPONSIBILITY MATTERS. (OCT 2018) DEVIATION NOV 2025)

Updates of Publicly Available Information Regarding Responsibility Matters (Oct 2018)

(a) The Contractor shall update the information in the Federal Awardee Performance and Integrity Information System (FAPIIS) on a semi-annual basis, throughout the life of the contract, by posting the required information in the System for Award Management via https://www.sam.gov.

(b) As required by section 3010 of the Supplemental Appropriations Act, 2010 (Pub. L. 111-212), all information posted in FAPIIS on or after April 15, 2011, except past performance reviews, will be publicly available. FAPIIS consists of two segments-

(1) The non-public segment, into which Government officials and the Contractor post information, which can only be viewed by-

(i) Government personnel and authorized users performing business on behalf of the Government; or

(ii) The Contractor, when viewing data on itself; and

(2) The publicly-available segment, to which all data in the non-public segment of FAPIIS is automatically transferred after a waiting period of 14 calendar days, except for-

(i) Past performance reviews required by subpart 42.15;

(ii) Information that was entered prior to April 15, 2011; or

(iii) Information that is withdrawn during the 14-calendar-day waiting period by the Government official who posted it in accordance with paragraph (c)(1) of this clause.

(c) The Contractor will receive notification when the Government posts new information to the Contractor's record.

(1) If the Contractor asserts in writing within 7 calendar days, to the Government official who posted the information, that some of the information posted to the non-public segment of FAPIIS is covered by a disclosure exemption under the Freedom of Information Act, the Government official who posted the information must within 7 calendar days remove the posting from FAPIIS and resolve the issue in accordance with agency Freedom of Information procedures, prior to reposting the releasable information. The contractor must cite 52.209-9 and request removal within 7 calendar days of the posting to FAPIIS.

(2) The Contractor will also have an opportunity to post comments regarding information that has been posted by the Government. The comments will be retained as long as the associated information is retained, i.e., for a total period of 6 years. Contractor comments will remain a part of the record unless the Contractor revises them.

(3) As required by section 3010 of Pub. L. 111-212, all information posted in FAPIIS on or after April 15, 2011, except past performance reviews, will be publicly available.

(d) Public requests for system information posted prior to April 15, 2011, will be handled under Freedom of Information Act procedures, including, where appropriate, procedures promulgated under E.O. 12600.

(End of Provision)

C.4 52.209-10 Prohibition on Contracting with Inverted Domestic Corporations. (Nov 2015) (DEVIATION NOV 2025)

a) Definitions. As used in this clause-

Inverted domestic corporation means a foreign incorporated entity that meets the definition of an inverted domestic corporation under 6 U.S.C. 395(b), applied in accordance with the rules and definitions of 6 U.S.C. 395(c).

Subsidiary means an entity in which more than 50 percent of the entity is owned-

(1) Directly by a parent corporation; or

(2) Through another subsidiary of a parent corporation.

(b) If the contractor reorganizes as an inverted domestic corporation or becomes a subsidiary of an inverted domestic corporation at any time during the period of performance of this contract, the Government may be prohibited from paying for Contractor activities performed after the date when it becomes an inverted domestic corporation or subsidiary. The Government may seek any available remedies in the event the Contractor fails to perform in accordance with the terms and conditions of the contract as a result of Government action under this clause.

(c) Exceptions to this prohibition are located at 9.108-2.

(d) In the event the Contractor becomes either an inverted domestic corporation, or a subsidiary of an inverted domestic corporation during contract performance, the Contractor shall give written notice to the Contracting Officer within five business days from the date of the inversion event.

(End of clause)in the System for Award Management, which can be accessed via https://www.sam.gov (see 52.204-7).

(End of Provision)

C.5 52.216-18 ORDERING (AUG 2020)

(a) Any supplies and services to be furnished under this contract shall be ordered by issuance of delivery orders or task orders by the individuals or activities designated in the Schedule. Such orders may be issued from 09/14/2026 through 09/13/2031.

(b) All delivery orders or task orders are subject to the terms and conditions of this contract. In the event of conflict between a delivery order or task order and this contract, the contract shall control.

(c) A delivery order or task order is considered "issued" when—

(1) If sent by mail (includes transmittal by U.S. mail or private delivery service), the Government deposits the order in the mail;

(2) If sent by fax, the Government transmits the order to the Contractor's fax number; or

(3) If sent electronically, the Government either—

(i) Posts a copy of the delivery order or task order to a Government document access system, and notice is sent to the Contractor; or

(ii) Distributes the delivery order or task order via email to the Contractor's email address.

(d) Orders may be issued by methods other than those enumerated in this clause only if authorized in the contract.

(End of Clause)

C.6 52.216-19 ORDER LIMITATIONS (OCT 1995)

(a) *Minimum order.* When the Government requires supplies or services covered by this contract in an amount of less than $100.00, the Government is not obligated to purchase, nor is the Contractor obligated to furnish, those supplies or services under the contract.

(b) *Maximum order.* The Contractor is not obligated to honor—

(1) Any order for a single item in excess of $250,00.00;

(2) Any order for a combination of items in excess of $250,000; or

(3) A series of orders from the same ordering office within 5 days that together call for quantities exceeding the limitation in paragraph (b)(1) or (2) of this section.

(c) If this is a requirements contract (i.e., includes the Requirements clause at subsection 52.216-21 of the Federal Acquisition Regulation (FAR)), the Government is not required to order a part of any one requirement from the Contractor if that requirement exceeds the maximum-order limitations in paragraph (b) of this section.

(d) Notwithstanding paragraphs (b) and (c) of this section, the Contractor shall honor any order exceeding the maximum order limitations in paragraph (b), unless that order (or orders) is returned to the ordering office within 3 days after issuance, with written notice stating the Contractor's intent not to ship the item (or items) called for and the reasons. Upon receiving this notice, the Government may acquire the supplies or services from another source.

(End of Clause)

C.7 52.217-8 OPTION TO EXTEND SERVICES (NOV 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within 30 days of the contract expiration.

(End of Clause)

C.8 52.216-22 INDEFINITE QUANTITY (NOV 2025) (DEVIATION)

(a) This is an indefinite-quantity contract for the supplies or services specified, and effective for the period stated, in the Schedule. The quantities of supplies and services specified in the Schedule are estimates only and are not purchased by this contract.

(b) Delivery or performance shall be made only as authorized by orders issued in accordance with the Ordering clause. The Contractor shall furnish to the Government, when and if ordered, the supplies or services specified in the Schedule up to and including the quantity designated in the Schedule as the "maximum." The Government shall order at least the quantity of supplies or services designated in the Schedule as the "minimum."

(c) Except for any limitations on quantities in the Order Limitations clause or in the Schedule, there is no limit on the number of orders that may be issued. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.

(d) Any order issued during the ordering period of this contract and not completed within that period shall be completed by the Contractor within the time specified in the order, which may include order options to be exercised after the ordering period of this contract but before the end of the period of performance of the order. The contract shall govern the Contractor's and Government's rights and obligations with respect to that order, including options exercised, to the same extent as if the order were completed during the contract's ordering period; provided, that the Contractor shall not be required to make any deliveries under this contract after 09/13/2031.

(End of Clause)

C.9 52.219-14 LIMITATIONS ON SUBCONTRACTING (NOV 2025) (DEVIATION)

(a) This clause does not apply to the unrestricted portion of a partial set-aside.

(b) *Definition. Similarly situated entity*, as used in this clause, means a first-tier subcontractor, including an independent contractor, that—

(1) Has the same small business program status as that which qualified the prime contractor for the award (*e.g.*, for a small business set-aside contract, any small business concern, without regard to its socioeconomic status); and

(2) Is considered small for the size standard under the North American Industry Classification System (NAICS) code the prime contractor assigned to the subcontract.

(c) *Applicability*. This clause applies only to—

(1) Contracts that have been set aside for any of the small business concerns identified in 19.000(a)(3);

(2) Part or parts of a multiple-award contract that have been set aside for any of the small business concerns identified in 19.000(a)(3);

(3) Contracts that have been awarded on a sole-source basis in accordance with sections 19.105, 19.106, 19.107, and 19.108;

(4) Orders expected to exceed the simplified acquisition threshold and that are set aside for small business concerns under multiple-award contracts, as described in 8.4 and 16.5;

(5) Orders, regardless of dollar value, that are set aside in accordance with sections 19.105, 19.106, 19.107, and 19.108 under multiple-award contracts, as described in 8.4 and 16.5; and

(6) Contracts using the HUBZone price evaluation preference to award to a HUBZone small business concern unless the concern waived the evaluation preference.

(d) *Independent contractors*. An independent contractor shall be considered a subcontractor.

(e) By submission of an offer and execution of a contract, the Contractor agrees that in performance of a contract assigned a North American Industry Classification System (NAICS) code for—

(1) Services (except construction), it will not pay more than 50 percent of the amount paid by the Government for contract performance to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor’s 50 percent subcontract amount that cannot be exceeded. When a contract includes both services and supplies, the 50 percent limitation shall apply only to the service portion of the contract;

(2) Supplies (other than procurement from a nonmanufacturer of such supplies), it will not pay more than 50 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor’s 50 percent subcontract amount that cannot be exceeded. When a contract includes both supplies and services, the 50 percent limitation shall apply only to the supply portion of the contract;

(3) General construction, it will not pay more than 85 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor’s 85 percent subcontract amount that cannot be exceeded; or

(4) Construction by special trade contractors, it will not pay more than 75 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor’s 75 percent subcontract amount that cannot be exceeded.

(f) The Contractor shall comply with the limitations on subcontracting as follows:

(1) For contracts, in accordance with paragraphs (c)(1), (2), (3) and (6) of this clause—

[x] By the end of the base term of the contract and then by the end of each subsequent option period; or

[] By the end of the performance period for each order issued under the contract.

(2) For orders, in accordance with paragraphs (c)(4) and (5) of this clause, by the end of the performance period for the order.

(g) A joint venture agrees that, in the performance of the contract, the applicable percentage specified in paragraph (e) of this clause will be performed by the aggregate of the joint venture participants.

(1) In a joint venture comprised of a small business protégé and its mentor approved by the Small Business Administration, the small business protégé shall perform at least 40 percent of the work performed by the joint venture. Work performed by the small business protégé in the joint venture must be more than administrative functions.

(2) In an 8(a) joint venture, the 8(a) participant(s) shall perform at least 40 percent of the work performed by the joint venture. Work performed by the 8(a) participants in the joint venture must be more than administrative functions.

(End of Clause)

C.10 52.219-28 POSTAWARD SMALL BUSINESS PROGRAM REREPRESENTATION (NOV 2025) (DEVIATION)

(a) *Definitions.* As used in this clause—

Long-term contract means a contract of more than five years in duration, including options. However, the term does not include contracts that exceed five years in duration because the period of performance has been extended for a cumulative period not to exceed six months under the clause at 52.217-8, Option to Extend Services, or other appropriate authority.

Small business concern—

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (c) of this clause.

(2) *Affiliates*, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

(b) If the Contractor represented that it was a small business concern, a small disadvantaged business concern, or a joint venture that was any of the small business concerns identified in 19.000(a)(3) prior to award of this contract, the Contractor shall rerepresent its size and socioeconomic status according to paragraph (e) of this clause or, if applicable, paragraph (g) of this clause, upon occurrence of any of the following:

(1) Within 30 days after execution of a novation agreement or within 30 days after modification of the contract to include this clause, if the novation agreement was executed prior to inclusion of this clause in the contract.

(2) Within 30 days after a merger or acquisition that does not require a novation or within 30 days after modification of the contract to include this clause, if the merger or acquisition occurred prior to inclusion of this clause in the contract.

(3) For long-term contracts-

(i) Within 60 to 120 days prior to the end of the fifth year of the contract; and

(ii) Within 60 to 120 days prior to the date specified in the contract for exercising any option thereafter.

(c) The Contractor shall rerepresent its size status in accordance with the size standard in effect at the time of this rerepresentation that corresponds to the North American Industry Classification System (NAICS) code(s) assigned to this contract. The small business size standard corresponding to this NAICS code(s) can be found at https://www.sba.gov/document/support--table-size-standards.

(d) The small business size standard for a Contractor providing an end item that it does not manufacture, process, or produce itself, for a contract other than a construction or service contract, is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition—

(1) Was set aside for small business and has a value above the simplified acquisition threshold;

(2) Used the HUBZone price evaluation preference regardless of dollar value, unless the Contractor waived the price evaluation preference; or

(3) Was an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(e) Except as provided in paragraph (g) of this clause, the Contractor shall make the representation(s) required by paragraph (b) of this clause by validating or updating all its representations in the Representations and Certifications section of the System for Award Management (SAM) and its other data in SAM, as necessary, to ensure that they reflect the Contractor's current status. The Contractor shall notify the contracting officer in writing within the timeframes specified in paragraph (b) of this clause, that the data have been validated or updated, and provide the date of the validation or update.

(f) If the Contractor represented that it was other than a small business concern prior to award of this contract, the Contractor may, but is not required to, take the actions required by paragraphs (e) or (g) of this clause.

(g) If the Contractor does not have representations and certifications in SAM, or does not have a representation in SAM for the NAICS code applicable to this contract, the Contractor is required to complete the following rerepresentation and submit it to the contracting office, along with the contract number and the date on which the rerepresentation was completed:

(1) The Contractor represents that it [ ] is, [ ] is not a small business concern under NAICS Code 238330 assigned to contract number .

(2) [*Complete only if the Contractor represented itself as a small business concern in paragraph (g)(1) of this clause.*] The Contractor represents that it [ ] is, [ ] is not, a small disadvantaged business concern as defined in 13 CFR 124.1001.

(3) *Women-owned small business (WOSB) joint venture eligible under the WOSB Program*. The Contractor represents that it [ ] is, [ ] is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [*The Contractor shall enter the name and unique entity identifier of each party to the joint venture:* _____.]

(4) *Economically disadvantaged women-owned small business (EDWOSB) joint venture*. The Contractor represents that it [ ] is, [ ] is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [*The Contractor shall enter the name and unique entity identifier of each party to the joint venture*: _____.]

(5) *Service-disabled veteran-owned small business (SDVOSB) joint venture eligible under the SDVOSB Program*. The Contractor represents that it [ ] is, [ ] is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [*The Contractor shall enter the name and unique entity identifier of each party to the joint venture*: _____.]

(6) *HUBZone joint venture eligible under the HUBZone Program*. [*Complete only if the offeror is a HUBZone small business concern*.] The offeror represents, as part of its offer, that It [ ] is, [ ] is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). [*The Contractor shall enter the name and unique entity identifier of each party to the joint venture:* _____.] Each HUBZone small business concern participating in the HUBZone joint venture must be certified as a HUBZone concern.

[Contractor to sign and date and insert authorized signer's name and title. ________________________]

(End of Clause)

C.11 52.222-90 ADDRESSING DEI DISCRIMINATION BY FEDERAL CONTRACTORS (DEVIATION APR 2026)

(a)*Definitions*. As used in this clause—

Program participation means membership or participation in, or access or admission to: training, mentoring, or leadership development programs; educational opportunities; clubs; associations; or similar opportunities that are sponsored or established by the contractor or subcontractor.

Racially discriminatory diversity, equity, and inclusion (DEI) activities means disparate treatment based on race or ethnicity in the recruitment, employment (e.g., hiring, promotions), contracting (*e.g.*, vendor agreements), program participation, or allocation or deployment of an entity's resources.

(b) In connection with the performance of work under this contract, the Contractor agrees as follows:

(1) The Contractor will not engage in any racially discriminatory DEI activities;

(2) The Contractor will furnish all information and reports, including providing access to books, records, and accounts, as required by the Contracting Officer, for purposes of ascertaining compliance with this clause;

(3) In the event of the Contractor's or a subcontractor's noncompliance with this clause, this contract may be canceled, terminated, or suspended in whole or in part, and the Contractor or subcontractor may be declared ineligible for further Government contracts;

(4) The Contractor will report any subcontractor's known or reasonably knowable conduct that may violate this clause to the Contracting Officer and take any appropriate remedial actions directed by the Contracting Officer; and

(5) The Contractor will inform the Contracting Officer if a subcontractor sues the Contractor and the suit puts at issue, in any way, the validity of this clause.

(6) The Contractor recognizes that compliance with the requirements of this clause are material to the Government's payment decisions for purposes of 31 U.S.C. 3729(b)(4).

(c) The Contractor must include the substance of this clause, including this paragraph (c), in subcontracts at any tier, including those for commercial products and commercial services, except those where the place of delivery or performance is outside the United States.

(End of Clause)

C.12 52.240-91 SECURITY PROHIBITIONS AND EXCLUSIONS (NOV 2025) (DEVIATION)

(a) *Definitions*. As used in this clause—

American Security Drone Act-covered foreign entity means an entity included on a list that the Federal Acquisition Security Council (FASC) develops and maintains and publishes in the System for Award Management (SAM) at *https://www.sam.gov* (section 1822 of Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

Backhaul means intermediate links between the core network, or backbone network, and the small subnetworks at the edge of the network (e.g., connecting cell phones/towers to the core telephone network). Backhaul can be wireless (e.g., microwave) or wired (e.g., fiber optic, coaxial cable, Ethernet).

Covered application means the social networking service TikTok or any successor application or service developed or provided by ByteDance Limited or an entity owned by ByteDance Limited.

Covered article, as defined in 41 U.S.C. 4713(k), means:

(1) Information technology, as defined in 40 U.S.C. 11101, including cloud computing services of all types;

(2) Telecommunications equipment or telecommunications service, as those terms are defined in section 3 of the Communications Act of 1934 (47 U.S.C. 153);

(3) The processing of information on a Federal or non-Federal information system, subject to the requirements of the Controlled Unclassified Information program (see 32 CFR part 2002); or

(4) Hardware, systems, devices, software, or services that include embedded or incidental information technology.

Covered foreign country means The People's Republic of China.

Covered telecommunications equipment or services means—

(1) Telecommunications equipment produced by Huawei Technologies Company or ZTE Corporation (or any subsidiary or affiliate of such entities);

(2) For the purpose of public safety, security of Government facilities, physical security surveillance of critical infrastructure, and other national security purposes, video surveillance and telecommunications equipment produced by Hytera Communications Corporation, Hangzhou Hikvision Digital Technology Company, or Dahua Technology Company (or any subsidiary or affiliate of such entities);

(3) Telecommunications or video surveillance services provided by such entities or using such equipment; or

(4) Telecommunications or video surveillance equipment or services produced or provided by an entity that the Secretary of Defense, in consultation with the Director of National Intelligence or the Director of the Federal Bureau of Investigation, reasonably believes to be an entity owned or controlled by, or otherwise connected to, the government of a covered foreign country.

Critical technology means—

(1) Defense articles or defense services included on the United States Munitions List set forth in the International Traffic in Arms Regulations under subchapter M of chapter I of title 22, Code of Federal Regulations;

(2) Items included on the Commerce Control List set forth in Supplement No. 1 to part 774 of the Export Administration Regulations under subchapter C of chapter VII of title 15, Code of Federal Regulations, and controlled—

(i) Pursuant to multilateral regimes, including for reasons relating to national security, chemical and biological weapons proliferation, nuclear nonproliferation, or missile technology; or

(ii) For reasons relating to regional stability or surreptitious listening;

(3) Specially designed and prepared nuclear equipment, parts and components, materials, software, and technology covered by part 810 of title 10, Code of Federal Regulations (relating to assistance to foreign atomic energy activities);

(4) Nuclear facilities, equipment, and material covered by part 110 of title 10, Code of Federal Regulations (relating to export and import of nuclear equipment and material);

(5) Select agents and toxins covered by part 331 of title 7, Code of Federal Regulations, part 121 of title 9 of such Code, or part 73 of title 42 of such Code; or

(6) Emerging and foundational technologies controlled pursuant to section 1758 of the Export Control Reform Act of 2018 (50 U.S.C. 4817).

FASC-prohibited unmanned aircraft system means an unmanned aircraft system manufactured or assembled by an American Security Drone Act—covered foreign entity.

FASCSA order means any of the following orders issued under the Federal Acquisition Supply Chain Security Act (FASCSA) requiring removing covered articles from executive agency information systems or excluding one or more named sources or named covered articles from executive agency procurement actions, as described in 41 CFR 201-1.303(d) and (e):

(1) The Secretary of Homeland Security may issue FASCSA orders that apply to civilian agencies, to the extent not covered by paragraph (2) or (3) of this definition. This type of FASCSA order may be referred to as a Department of Homeland Security (DHS) FASCSA order.

(2) The Secretary of Defense may issue FASCSA orders that apply to the Department of Defense (DoD) and national security systems other than sensitive compartmented information systems. This type of FASCSA order may be referred to as a DoD FASCSA order.

(3) The Director of National Intelligence (DNI) may issue FASCSA orders that apply to the intelligence community and sensitive compartmented information systems, to the extent not covered by paragraph (2) of this definition. This type of FASCSA order may be referred to as a DNI FASCSA order.

Information technology, as defined in 40 U.S.C. 11101(6)—

(1) Means any equipment or interconnected system or subsystem of equipment, used in the automatic acquisition, storage, analysis, evaluation, manipulation, management, movement, control, display, switching, interchange, transmission, or reception of data or information by the executive agency, if the equipment is used by the executive agency directly or is used by a contractor under a contract with the executive agency that requires the use—

(i) Of that equipment; or

(ii) Of that equipment to a significant extent in the performance of a service or the furnishing of a product;

(2) Includes computers, ancillary equipment (including imaging peripherals, input, output, and storage devices necessary for security and surveillance), peripheral equipment designed to be controlled by the central processing unit of a computer, software, firmware and similar procedures, services (including support services), and related resources; but

(3) Does not include any equipment acquired by a Federal contractor incidental to a Federal contract.

Intelligence community, as defined by 50 U.S.C. 3003(4), means the following—

(1) The Office of the Director of National Intelligence;

(2) The Central Intelligence Agency;

(3) The National Security Agency;

(4) The Defense Intelligence Agency;

(5) The National Geospatial-Intelligence Agency;

(6) The National Reconnaissance Office;

(7) Other offices within the Department of Defense for the collection of specialized national intelligence through reconnaissance programs;

(8) The intelligence elements of the Army, the Navy, the Air Force, the Marine Corps, the Coast Guard, the Federal Bureau of Investigation, the Drug Enforcement Administration, and the Department of Energy;

(9) The Bureau of Intelligence and Research of the Department of State;

(10) The Office of Intelligence and Analysis of the Department of the Treasury;

(11) The Office of Intelligence and Analysis of the Department of Homeland Security; or

(12) Such other elements of any department or agency as may be designated by the President, or designated jointly by the Director of National Intelligence and the head of the department or agency concerned, as an element of the intelligence community.

Interconnection arrangement means arrangements governing the physical connection of two or more networks to allow the use of another's network to hand off traffic where it is ultimately delivered (e.g., connecting a customer of telephone provider A to a customer of telephone company B) or sharing data and other information resources.

Kaspersky Lab-covered article means any hardware, software, or service that—

(1) Is developed or provided by a Kaspersky Lab-covered entity;

(2) Includes any hardware, software, or service developed or provided in whole or in part by a Kaspersky Lab-covered entity; or

(3) Contains components using any hardware or software developed in whole or in part by a Kaspersky Lab-covered entity.

Kaspersky Lab-covered entity means—

(1) Kaspersky Lab;

(2) Any successor entity to Kaspersky Lab, including any change in name, e.g., “Kaspersky”;

(3) Any entity that controls, is controlled by, or is under common control with Kaspersky Lab; or

(4) Any entity of which Kaspersky Lab has a majority ownership.

National security system, as defined in 44 U.S.C. 3552, means any information system (including any telecommunications system) used or operated by an agency or by a contractor of an agency, or other organization on behalf of an agency—

(1) The function, operation, or use of which involves intelligence activities; involves cryptologic activities related to national security; involves command and control of military forces; involves equipment that is an integral part of a weapon or weapons system; or is critical to the direct fulfillment of military or intelligence missions, but does not include a system that is to be used for routine administrative and business applications (including payroll, finance, logistics, and personnel management applications); or

(2) Is protected at all times by procedures established for information that have been specifically authorized under criteria established by an Executive order or an Act of Congress to be kept classified in the interest of national defense or foreign policy.

Roaming means cellular communications services (e.g., voice, video, data) received from a visited network when unable to connect to the facilities of the home network either because signal coverage is too weak or because traffic is too high.

Sensitive compartmented information means classified information concerning or derived from intelligence sources, methods, or analytical processes, which is required to be handled within formal access control systems established by the Director of National Intelligence.

Sensitive compartmented information system means a national security system authorized to process or store sensitive compartmented information.

Source means a non-Federal supplier, or potential supplier, of products or services, at any tier.

Subsidiary means an entity in which more than 50 percent of the entity is owned directly by a parent corporation or through another subsidiary of a parent corporation.

Substantial or essential component means any component necessary for the proper function or performance of a piece of equipment, system, or service.

Unmanned aircraft means an aircraft that is operated without the possibility of direct human intervention from within or on the aircraft (49 U.S.C. 44801(11)).

Unmanned aircraft system means an unmanned aircraft and associated elements (including communication links and the components that control the unmanned aircraft) that are required for the operator to operate safely and efficiently in the national airspace system (49 U.S.C. 44801(12)).

(b) *Prohibitions on providing or using specific products or services in performance of contract*. Unless a waiver or exception applies, the Contractor is prohibited from providing any products or services to the Government or using in the performance of the contract any of the following:

(1) A covered application on any information technology owned or managed by the Government, or on any information technology used or provided by the Contractor under this contract, including equipment provided by the Contractor's employees (section 102 of Division R of the Consolidated Appropriations Act, 2023 (Pub. L. 117-328));

(2) A Kaspersky Lab-covered article (Section 1634 of Division A of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91));

(3) Covered telecommunications equipment or services used as a substantial or essential component of any system, or as critical technology as part of any system (paragraphs (a)(1)(A) of section 889 of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232)). This does not prohibit contractors from providing—

(i) A service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) Prohibition on unmanned aircraft systems manufactured or assembled by American Security Drone Act—covered foreign entities.

(1) Prohibition. The Contractor is prohibited from—

(i) Delivering any FASC-prohibited unmanned aircraft system, which includes unmanned aircraft (i.e., drones) and associated elements (sections 1823 and 1826 of American Security Drone Act of 2023, within the National Defense Authorization Act for Fiscal Year 2024, Pub. L. 118-31, Div. A, Title XVIII, Subtitle B, 41 U.S.C. 3901 note prec.);

(ii) On or after December 22, 2025, operating a FASC-prohibited unmanned aircraft system in the performance of the contract (section 1824 of Pub. L. 118-31); and

(iii) On or after December 22, 2025, using Federal funds to procure or operate a FASC-prohibited unmanned aircraft system (section 1825 of Pub. L. 118-31).

(2) *Procedures*. The Contractor shall search SAM for the FASC-maintained list of American Security Drone Act—covered foreign entities before proposing, or using in performance of the contract, any unmanned aircraft system. Also, the Contractor shall ensure any effort or expenditure associated with a FASC-prohibited unmanned aircraft system is consistent with a corresponding exemption, exception, or waiver determination expressly stated in the contract.

(3) *Exemptions, exceptions, and waivers*. The prohibitions in paragraph (c) of this clause do not apply where the agency has determined an exemption, exception, or waiver applies, and the

contract indicates that such a determination has been made. See sections 1823 through 1825 and 1832 of Public Law 118-31 for statutory requirements pertaining to exemptions, exceptions, and waivers.

(d) *Prohibition on using or providing specific products or services or conducting certain transactions regardless of connection to contract*.

(1) *Certain telecommunications and video surveillance equipment, systems, or services*.

(i) Unless an applicable waiver has been issued by the Government, the Contractor cannot use any equipment, systems, or services that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system (paragraph (a)(1)(B) of section 889 of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232)).

(ii) This prohibition applies to using covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. This does not prohibit the contractor from using—

(A) A service that connects to the facilities of a third party, such as backhaul, roaming, or interconnection arrangements; or

(B) Telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) *Office of Foreign Assets Control Restrictions*.

(i) Except as authorized by the Office of Foreign Assets Control (OFAC) in the Department of the Treasury, the Contractor shall not acquire, for use in the performance of this contract, any supplies or services if any proclamation, Executive order, or statute administered by OFAC, or if OFAC's implementing regulations at 31 CFR chapter V, would prohibit such a transaction by a person subject to the jurisdiction of the United States.

(ii) Except as authorized by OFAC, most transactions involving Cuba, Iran, and Sudan are prohibited, as are most imports from Burma or North Korea, into the United States or its outlying areas.

(A) For lists of entities and individuals subject to economic sanctions, see OFAC's List of Specially Designated Nationals and Blocked Persons at *https://home.treasury.gov/policy-issues/financial-sanctions/specially-designated-nationals-and-blocked-persons-list-sdn-human-readable-lists*.

(B) For more information about these restrictions, as well as updates, see OFAC's regulations at 31 CFR chapter V and at *https://home.treasury.gov/policy-issues/office-of-foreign-assets-control-sanctions-programs-and-information*.

(C) To conduct electronic screens of potential parties to regulated transactions, see the consolidated screening list at *https://www.trade.gov/consolidated-screening-list*, which consolidates multiple export screening lists of the Departments of Commerce, State, and the Treasury.

(3) *Sudan prohibition*. The Contractor is prohibited from conducting any restricted business operations in Sudan in accordance with Accountability and Divestment Act of 2007 (Pub. L. 110-174).

(4) *Iran prohibitions*.

(i) Unless an exception applies according to paragraph (d)(4)(iii) or the Government grants a waiver, the contractor shall not engage in certain activities or transactions relating to Iran (section 6(b)(1)(A) of Iran Sanctions Act (50 U.S.C. 1701 note).

(ii) Unless an exception applies according to paragraph (d)(4)(iii) or the Government grants a waiver, contractor shall not export certain sensitive technology to Iran, as determined by the President, and has an active exclusion in SAM (22 U.S.C. 8515).

(iii) The prohibition in paragraphs (d)(4)(i) and (d)(4)(ii) do not apply if the acquisition is subject to trade agreements and the offeror certifies that all the offered products are designated country end products or designated country construction material (see part 25).

(iv) Unless an exception applies or the Government grants a waiver, contractors are prohibited from knowingly engaging in any significant transaction (i.e., over $15,000) with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked according to the International Emergency Economic Powers Act (section 6(b)(1)(B) of Iran Sanctions Act (50 U.S.C. 1701 note)).

(e) *Governmentwide exclusion and removal orders*.

(1) Unless the Government has issued an applicable waiver, contractors shall not provide or use as part of the performance of the contract any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA order as follows:

(i) For solicitations and contracts awarded by a Department of Defense contracting office, DoD FASCSA orders apply.

(ii) For all other solicitations and contracts, DHS FASCSA orders apply.

(2) The Contractor shall search for the phrase "FASCSA order" in the System for Award Management (SAM) at https://www.sam.gov to locate applicable FASCSA orders.

(3) The Government may identify in the solicitation other FASCSA orders that are not in SAM, which are effective and apply to the solicitation and resulting contract.

(4) A FASCSA order issued after the date of solicitation applies to this contract only if added by an amendment to the solicitation or modification to the contract (see FAR 40.204-1(c)).

(f)*Reasonable inquiry*. The contractor shall conduct a reasonable inquiry to determine if there are any prohibited products or services. The inquiry will look at any information in the entity's possession but does not need to include an internal or third-party audit.

(g) *Removal of prohibited products and services*. For Federal Supply Schedules, Governmentwide acquisition contracts, multi-agency contracts or any other procurement instrument intended for use by multiple agencies, upon notification from the Contracting Officer, during the performance of the contract, the Contractor shall promptly make any necessary changes or modifications to remove any product or service produced or provided by a source that this clause prohibits.

(h) *General report*.

(1) If the Contractor identifies or is notified by any source, (including a subcontractor at any tier), that any product or service provided or used (or to be provided or used) during contract performance does not comply with any prohibition in this clause, then the Contractor shall report the following information, or as much information is known, in writing to the contracting office as identified in paragraph (h)(2) within 72 hours:

(i) Contract number and order number, if applicable;

(ii) The specific prohibition the product or service is not complying with;

(iii) A description of the products or services that the Contractor identifies or has reason to suspect is prohibited (include brand; model number, such as the original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable);

(iv) The entity that produced the product or service (include entity name, unique entity identifier, Contractor and Government Entity (CAGE) code, facilities responsible for design, fabrication, assembly, packaging, and test of the product, and whether the entity was the OEM or a distributor (provide manufacturer codes and distributor codes used for the product));

(v) Description of the functionality of the product or service and how that functionality impacts the risk to the product or service;

(vi) An explanation of any factors relevant to determining if the product or service should be permitted by an applicable exception, exemption, or waiver (if the contractor would like the Government to consider a waiver, and asks for such a waiver);

(vii) Whether alternative products or services are available that would comply with the prohibition;

(viii) If the product or service is related to item maintenance, include the following information on the item being maintained:

(A) Brand;

(B) Model number, OEM number, manufacturer part number, or wholesaler number; and

(C) Item description, as applicable.

(ix) Any readily available information about mitigation actions implemented or recommended.

(2) If a report must be submitted to a contracting office, the Contractor shall submit the report as follows:

(i) If a Department of Defense contracting office, the Contractor shall report to the website at https://dibnet.dod.mil.

(ii) For all other contracting offices, the Contractor shall report to the Contracting Officer.

(iii) For indefinite delivery contracts, the Contractor shall report to both the contracting office for the indefinite delivery contract and the contracting office for any affected order.

(3) If the report provided does not contain any of the information required by paragraph (h)(1) of this clause, and the contractor later discovers new information that is required by paragraph (h)(1) of this clause, then the contractor shall submit a subsequent report within 72 hours of discovering the new information.

(4) The contractor shall also report the information in paragraph (h)(1) if the contractor wishes to ask for a waiver of the requirements of a new FASCSA order being applied through modification.

(i) *New FASCSA orders report*.

(1) During contract performance, the Contractor shall review SAM at least once every three months, or as advised by the Contracting Officer, to check for covered articles subject to FASCSA order(s), or for products or services produced by a source subject to FASCSA order(s) not currently identified under paragraph (e) of this clause.

(2) If the Contractor identifies a new FASCSA order(s) that could impact their supply chain, then the Contractor shall conduct a reasonable inquiry to identify whether a covered article or product or service produced or provided by a source subject to the FASCSA order(s) was provided to the Government or used during contract performance. The inquiry will look at any information in the entity's possession but does not need to include an internal or third-party audit.

(3) The Contractor shall submit a report to the contracting office identified in paragraph (h)(2) of this clause if the Contractor identifies, including through any notification by a subcontractor at any tier, that a covered article or product or service produced or provided by a source was provided to the Government or used during contract performance and is subject to a FASCSA order(s). For indefinite delivery contracts, the Contractor shall report to both the contracting office for the indefinite delivery contract and the contracting office for any affected order. The Contractor shall report the following information within 72 hours for each covered article or each product or service produced or provided by a source, where the covered article or source is subject to a FASCSA order:

(i) Contract number and order number, if applicable;

(ii) Name of the covered article or source subject to a FASCSA order;

(iii) The specific FASCSA order the product or service does not comply with;

(iv) The elements of (h)(1)(iii) through (ix) of this clause.

(j) Subcontracts. The Contractor shall insert the substance of this clause, including this paragraph (j) but excluding subparagraphs (d)(1) and (i)(1), in all subcontracts and other contractual instruments, including subcontracts for acquiring commercial products or commercial services.

(End of Provision)

C.13 VAAR 852.212-71 GRAY MARKET AND COUNTERFEIT ITEMS (FEB 2023)

(a) No used, refurbished, or remanufactured supplies or equipment/parts shall be provided. This procurement is for new Original Equipment Manufacturer (OEM) items only. No gray market items shall be provided. Gray market items are OEM goods intentionally or unintentionally sold outside an authorized sales territory or sold by non-authorized dealers in an authorized sales territory.

(b) No counterfeit supplies or equipment/ parts shall be provided. Counterfeit items include unlawful or unauthorized reproductions, substitutions, or alterations that have been mismarked, misidentified, or otherwise misrepresented to be an authentic, unmodified item from the original manufacturer, or a source with the express written authority of the original manufacturer or current design activity, including an authorized aftermarket manufacturer. Unlawful or unauthorized substitutions include used items represented as new, or the false identification of grade, serial number, lot number, date code, or performance characteristics.

(c) Vendor shall be an OEM, authorized dealer, authorized distributor, or authorized reseller for the proposed equipment/system, verified by an authorization letter or other documents from the OEM. All software licensing, warranty and service associated with the equipment/system shall be in accordance with the OEM terms and conditions.

(End of Clause)

C.14 52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

https://www.acquisition.gov/far-overhaul/far-part-deviation-guide/far-overhaul-part-52#FAR_52_252_2
http://www.va.gov/oal/library/vaar/index.asp (VAAR)

(End of Clause)

C.15 52.252-6 AUTHORIZED DEVIATIONS IN CLAUSES (NOV 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any VAAR (48 CFR Chapter FEDERAL ACQUISITION REGULATION (48 CFR Chapter 8)) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of Clause)

FAR Number	Title	Date
52.203-6	RESTRICTIONS ON SUBCONTRACTOR SALES TO THE GOVERNMENT ALTERNATE I (NOV 2021)	JUN 2020
52.203-17	CONTRACTOR EMPLOYEE WHISTLEBLOWER RIGHTS	NOV 2023
52.203-19	PROHIBITION ON REQUIRING CERTAIN INTERNAL CONFIDENTIALITY AGREEMENTS OR STATEMENTS	JAN 2017
52.204-13	SYSTEM FOR AWARD MANAGEMENT—MAINTENANCE (DEVIATION)	NOV 2025
52.219-6	NOTICE OF TOTAL SMALL BUSINESS SET-ASIDE (DEVIATION)	NOV 2025
52.219-8	UTILIZATION OF SMALL BUSINESS CONCERNS (DEVIATION)	NOV 2025
52.222-19	CHILD LABOR—COOPERATION WITH AUTHORITIES AND REMEDIES (DEVIATION)	MAR 2026
52.222-35	EQUAL OPPORTUNITY FOR VETERANS (DEVIATION)	NOV 2025
52.222-36	EQUAL OPPORTUNITY FOR WORKERS WITH DISABILITIES (DEVIATION)	NOV 2025
52.222-37	EMPLOYMENT REPORTS ON VETERANS (DEVIATION)	NOV 2025
52.222-40	NOTIFICATION OF EMPLOYEE RIGHTS UNDER THE NATIONAL LABOR RELATIONS ACT (DEVIATION)	NOV 2025
52.222-50	COMBATING TRAFFICKING IN PERSONS (DEVIATION)	NOV 2025
52.223-23	SUSTAINABLE PRODUCTS (DEVIATION)	NOV 2025
52.226-8	ENCOURAGING CONTRACTOR POLICIES TO BAN TEXT MESSAGING WHILE DRIVING	MAY 2024
52.229-3	FEDERAL, STATE, AND LOCAL TAXES (DEVIATION)	SEP 2025
52.229-12	TAX ON CERTAIN FOREIGN PROCUREMENTS	FEB 2021
52.232-33	PAYMENT BY ELECTRONIC FUNDS TRANSFER—SYSTEM FOR AWARD MANAGEMENT	OCT 2018
52.232-36	PAYMENT BY THIRD PARTY (DEVIATION)	NOV 2025
52.232-40	PROVIDING ACCELERATED PAYMENTS TO SMALL BUSINESS SUBCONTRACTORS	MAR 2023
52.233-3	PROTEST AFTER AWARD	AUG 1996
52.233-4	APPLICABLE LAW FOR BREACH OF CONTRACT CLAIM	OCT 2004
852.203-70	COMMERCIAL ADVERTISING	MAY 2018
852.215-70	SERVICE-DISABLED VETERAN-OWNED AND VETERAN-OWNED SMALL BUSINESS EVALUATION FACTORS (DEVIATION)	JAN 2023
852.215-71	EVALUATION FACTOR COMMITMENTS	OCT 2019
852.222-71	COMPLIANCE WITH EXECUTIVE ORDER 13899 (DEVIATION) (APR 2025)	APR 2025
852.232-72	ELECTRONIC SUBMISSION OF PAYMENT REQUESTS	NOV 2018
852.242-71	ADMINISTRATIVE CONTRACTING OFFICER	OCT 2020
852.246-71	REJECTED GOODS	OCT 2018

(End of Addendum to 52.212-4)

SECTION D - CONTRACT DOCUMENTS, EXHIBITS, OR ATTACHMENTS

Brand Name Justification

SECTION E - SOLICITATION PROVISIONS

E.1 52.212-1 INSTRUCTIONS TO OFFERORS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (OCT 2025) (DEVIATION)

(a) *Submission of offers*. Submit signed and dated offers to the office specified in this solicitation at or before the exact time specified in this solicitation. As a minimum, offers shall include—

(1) The solicitation number;

(2) The name, address, telephone number of the Offeror;

(3) The Offeror's Unique Entity Identifier (UEI) and, if applicable, Electronic Funds Transfer (EFT) indicator;

(4) Information necessary to evaluate the factors contained in the provision at 52.212-2 or as described in the solicitation;

(5) Responses to provisions that require Offeror completion of information, representations, and certifications (other than those collected via the System for Award Management (SAM)); and

(6) A statement specifying the extent of agreement with all terms, conditions, and provisions included in the solicitation and any solicitation amendments.

(b) *Period for acceptance of offers*. The Offeror agrees to hold the prices in its offer firm for 60 calendar days from the date specified for receipt of offers, unless another time period is specified in an addendum to the solicitation.

(c) *Late submissions, modifications, revisions, and withdrawals of offers*.

(1) Offerors are responsible for submitting offers and any modifications or revisions to the Government office designated in the solicitation by the time specified in the solicitation.

(2) Any offer, modification, or revision received after the time specified for receipt of offers is "late" and will not be considered unless it is received before award is made and the Contracting Officer determines that accepting the late offer would not unduly delay the acquisition. However, a late modification of an otherwise successful offer that makes its terms more favorable to the Government will be considered at any time it is received and may be accepted.

(3) If an emergency or unanticipated event interrupts normal Government processes so that offers cannot be received at the Government office designated for receipt of offers by the exact time specified in the solicitation, and urgent Government requirements preclude amendment of the solicitation or other notice of an extension of the closing date, the time specified for receipt of offers will be deemed to be extended to the same time of day specified in the solicitation on the first work day on which normal Government processes resume.

(4) Offerors may withdraw their offers by written notice to the Government received at any time before award.

(d) *Contract award (not applicable to Invitation for Bids)*. The Government intends to evaluate offers and award a contract without discussions with Offerors. Therefore, the Offeror's initial offer should contain the Offeror's best terms. However, the Government reserves the right to conduct discussions, if necessary. The Government may reject any or all offers if such action is in the public interest, accept other than the lowest offer, and waive informalities and minor irregularities in offers received.

(e) *Debriefings*. If a postaward debriefing is given to requesting Offerors, the Government will disclose the following information, if applicable:

(1) The agency's evaluation of the significant weak or deficient factors in the debriefed Offeror's offer.

(2) The overall evaluated cost or price and technical rating of the successful Offeror and the debriefed Offeror and past performance information on the debriefed Offeror.

(3) The overall ranking of all Offerors when any ranking was developed by the agency during source selection.

(4) A summary of the rationale for award.

(5) For acquisitions of commercial products, the make and model of the product to be delivered by the successful Offeror.

(6) Reasonable responses to relevant questions posed by the debriefed Offeror as to whether the agency followed source-selection procedures set forth in the solicitation, applicable regulations, and other applicable authorities.

(End of Provision)

ADDENDUM to FAR 52.212-1 INSTRUCTIONS TO OFFERORS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

Failure to respond to all the evaluation factors or respond in sufficient detail for the Government to conduct a meaningful evaluation may result in your quote being eliminated from competition prior to evaluation. Upon RFQ close, the Government will conduct a cursory review of the quote package. If it's determined that the Government cannot conduct a meaningful evaluation due to lack of response to an evaluation factor(s), your quote may be eliminated from competition.

Timeliness. Make note of the solicitation closing date and time listed on the first page of the solicitation.

Instructions for preparation and submission:

Quote format and content – The quote must have information identifying the quoter, the solicitation number, and the contents as outlined below. The quote must be complete, self-sufficient, and respond directly to the requirements of this solicitation.

To be considered for award, quotes must include:
Factor 1: Technical

- Offeror is technically capable of providing all required line items and provides authorized distributor's letter for branded flooring materials.

Factor 2: Delivery

- Offeror provides an overview of the delivery timeline. Indicate if there are any supply chain and/or long lead timelines.

Factor 3: Socioeconomic Considerations:

- In an effort to achieve socioeconomic small business goals, the Government will evaluate proposed participation in performance of the contract by Service-Disabled Veteran-Owned Small Businesses ("SDVOSB") and Veteran-Owned Small Businesses ("VOSB"). The following clauses, which are included in the Addendum to FAR 52.212-4 in Section C in of this Solicitation, set forth what will be considered under this evaluation factor.
  - VAAR 852.215-70, SDVOSB and VOSB Evaluation Factors (DEC 2009)
  - VAAR 852.215-71, Evaluation Factor Commitments (DEC 2009)
  - VAAR 852.219-76, VA Notice of Limitations on Subcontracting – Certificate of Compliance for Supplies and Products (JAN 2023) (DEVIATION)

Factor 4: Price

- Complete all contract line-item numbers (CLIN) listed in section B2 Price/Cost Schedule.

ADDENDUM to FAR 52.212-1 INSTRUCTIONS TO OFFERORS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

Provisions that are incorporated by reference (by Citation Number, Title, and Date), have the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available.

The following provisions are incorporated into 52.212-1 as an addendum to this solicitation:

E.2 52.209-7 INFORMATION REGARDING RESPONSIBILITY MATTERS (OCT 2018)

(a) *Definitions.* As used in this provision—

"Administrative proceeding" means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (e.g., Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

"Federal contracts and grants with total value greater than $10,000,000" means—

(1) The total value of all current, active contracts and grants, including all priced options; and

(2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

"Principal" means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror [ ] has [ ] does not have current active Federal contracts and grants with total value greater than $10,000,000.

(c) If the offeror checked "has" in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

(i) In a criminal proceeding, a conviction.

(ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of $5,000 or more.

(iii) In an administrative proceeding, a finding of fault and liability that results in—

(A) The payment of a monetary fine or penalty of $5,000 or more; or

(B) The payment of a reimbursement, restitution, or damages in excess of $100,000.

(iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.

(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIIS as required through maintaining an active registration in the System for Award Management, which can be accessed via https://www.sam.gov (see 52.204-7).

(End of Provision)

E.3 52.216-1 TYPE OF CONTRACT (NOV 2025) (DEVIATION)

The Government contemplates award of a Firm-Fixed-Price contract resulting from this solicitation.

(End of Provision)

E.4 52.219-1 SMALL BUSINESS PROGRAM REPRESENTATIONS (NOV 2025) (DEVIATION)

(a) *Definitions*. As used in this provision-

Economically disadvantaged women-owned small business (EDWOSB) concern means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States and who are economically disadvantaged in accordance with 13 CFR part 127, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300. It automatically qualifies as a women-owned small business concern eligible under the WOSB Program.

HUBZone small business concern means a small business concern that meets the requirements described in 13 CFR 126.200, is certified by the Small Business Administration (SBA) and designated by SBA as a HUBZone small business concern in the Small Business Search (SBS) (13 CFR 126.103).

Service-disabled veteran-owned small business (SDVOSB) concern eligible under the SDVOSB Program means an SDVOSB concern that is designated in the System for Award Management (SAM) as certified by the Small Business Administration (SBA) in accordance with 13 CFR 128.300.

Small business concern—

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (b) of this provision.

(2) *Affiliates*, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

Small disadvantaged business concern, means a small business concern that-

(1) Is at least 51 percent unconditionally and directly owned (as defined at 13 CFR 124.105) by one or more socially disadvantaged (as defined at 13 CFR 124.103) and economically disadvantaged (as defined at 13 CFR 124.104) individuals who are citizens of the United States, and

(2) The management and daily business operations of which are controlled (as defined at 13 CFR 124.106) by individuals who meet the criteria in paragraph (1) of this definition.

Women-owned small business (WOSB) concern eligible under the WOSB Program (in accordance with 13 CFR part 127) means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300.

(b)(1) The North American Industry Classification System (NAICS) code for this acquisition is 238330.

(2) The small business size standard is $19 Million.

(3) The small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce (*i.e.*, nonmanufacturer), is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition—

(i) Is set aside for small business and has a value above the simplified acquisition threshold;

(ii) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or

(iii) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(c) *Representations*.

(1) The offeror represents as part of its offer that—

(i) It [ ] is, [ ] is not a small business concern; or

(ii) It [ ] is, [ ] is not a small business joint venture that complies with the requirements of 13 CFR 121.103(h) and 13 CFR 125.8(a) and (b). [*The offeror shall enter the name and unique entity identifier of each party to the joint venture*: _________________.]

(2) [*Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.*] The offeror represents that it [ ] is, [ ] is not, a women-owned small disadvantaged business concern.

(3) *Women-owned small business (WOSB) joint venture eligible under the WOSB Program*. The offeror represents as part of its offer that it [ ] is, [ ] is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [*The offeror shall enter the name and unique entity identifier of each party to the joint venture:* _________________.]

(4) *Economically disadvantaged women-owned small business (EDWOSB) joint venture*. The offeror represents as part of its offer that it [ ] is, [ ] is not a joint venture that complies with the

requirements of 13 CFR 127.506(a) through (c). [*The offeror shall enter the name and unique entity identifier of each party to the joint venture:* _________________.]

(5) *SDVOSB joint venture eligible under the SDVOSB Program.* [*Complete only if the offeror is certified as a SDVOSB concern.*] The offeror represents as part of its offer that it [ ] is, [ ] is not a SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [*The offeror shall enter the name and unique entity identifier of each party to the joint venture:* _________________.]

(6) *HUBZone joint venture eligible under the HUBZone Program. [Complete only if the offeror is a HUBZone small business concern*.] The offeror represents, as part of its offer, that it [ ] is, [ ] is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). *[The offeror shall enter the name and unique entity identifier of each party to the joint venture:* _________________.] Each HUBZone small business concern participating in the HUBZone joint venture must be certified as a HUBZone concern.

(d) *Notice*.

Under 15 U.S.C. 645(d), any person who misrepresents a firm's status as a business concern that is small, HUBZone small, small disadvantaged, service-disabled veteran-owned small, economically disadvantaged women-owned small, or women-owned small eligible under the WOSB Program in order to obtain a contract to be awarded under the preference programs established pursuant to section 8, 9, 15, 31, and 36 of the Small Business Act or any other provision of Federal law that specifically references section 8(d) for a definition of program eligibility, will be—

(1) Punished by imposition of fine, imprisonment, or both;

(2) Subject to administrative remedies, including suspension and debarment; and

(3) Ineligible for participation in programs conducted under the authority of the Act.

(End of Provision)

E.5 52.229-11 TAX ON CERTAIN FOREIGN PROCUREMENTS—NOTICE AND REPRESENTATION. (JUN 2020) (DEVIATION SEP 2025)

(a) Definitions. As used in this provision—

Foreign person means any person other than a United States person.

Specified Federal procurement payment means any payment made pursuant to a contract with a foreign contracting party that is for goods, manufactured or produced, or services provided in a foreign country that is not a party to an international procurement agreement with the United States. For purposes of the prior sentence, a foreign country does not include an outlying area.

United States person as defined in 26 U.S.C. 7701(a)(30) means

(1) A citizen or resident of the United States;

(2) A domestic partnership;

(3) A domestic corporation;

(4) Any estate (other than a foreign estate, within the meaning of 26 U.S.C. 701(a)(31)); and

(5) Any trust if–

(i) A court within the United States is able to exercise primary supervision over the administration of the trust; and

(ii) One or more United States persons have the authority to control all substantial decisions of the trust.

(b) Unless exempted, there is a 2 percent tax of the amount of a specified Federal procurement payment on any foreign person receiving such payment. See 26 U.S.C. 5000C and its implementing regulations at 26 CFR 1.5000C-1 through 1.5000C-7.

(c) Exemptions from withholding under this provision are described at 26 CFR 1.5000C-1(d)(5) through (7). The Offeror would claim an exemption from the withholding by using the Department of the Treasury Internal Revenue Service Form W-14, Certificate of Foreign Contracting Party Receiving Federal Procurement Payments, available via the internet at www.irs.gov/w14. Any exemption claimed and self-certified on the IRS Form W-14 is subject to audit by the IRS. Any disputes regarding the imposition and collection of the 26 U.S.C. 5000C tax are adjudicated by the IRS as the 26 U.S.C. 5000C tax is a tax matter, not a contract issue. The IRS Form W-14 is provided to the acquiring agency rather than to the IRS.

(d) For purposes of withholding under 26 U.S.C. 5000C, the Offeror represents that

(1) It □ is □ is not a foreign person; and

(2) If the Offeror indicates "is" in paragraph (d)(1) of this provision, then the Offeror represents that—I am claiming on the IRS Form W-14 □ a full exemption, or □ partial or no exemption [Offeror shall select one] from the excise tax.

(e) If the Offeror represents it is a foreign person in paragraph (d)(1) of this provision, then—

(1) The clause at FAR 52.229-12, Tax on Certain Foreign Procurements, will be included in any resulting contract; and

(2) The Offeror shall submit with its offer the IRS Form W-14. If the IRS Form W-14 is not submitted with the offer, exemptions will not be applied to any resulting contract and the Government will withhold a full 2 percent of each payment.

(f) If the Offeror selects "is" in paragraph (d)(1) and "partial or no exemption" in paragraph (d)(2) of this provision, the Offeror will be subject to withholding in accordance with the clause at FAR 52.229-12, Tax on Certain Foreign Procurements, in any resulting contract.

(g) A taxpayer may, for a fee, seek advice from the Internal Revenue Service (IRS) as to the proper tax treatment of a transaction. This is called a private letter ruling. Also, the IRS may publish a revenue ruling, which is an official interpretation by the IRS of the Internal Revenue Code, related statutes, tax treaties, and regulations. A revenue ruling is the conclusion of the IRS on how the law is applied to a specific set of facts. For questions relating to the interpretation of the IRS regulations go to https://www.irs.gov/help/tax-law-questions.(End of Provision)

E.6 52.233-2 SERVICE OF PROTEST (SEP 2006)(DEVIATION NOV 2025)

(a) Protests, (as defined in FAR 33.102), that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), must be served on the Contracting Officer identified in the solicitation by obtaining written and dated acknowledgment of receipt from them.

(b) The copy of any protest must be received in the office designated above within one day of filing a protest with the GAO.

(End of Provision)

E.7 52.240-90 SECURITY PROHIBITIONS AND EXCLUSIONS REPRESENTATIONS AND CERTIFICATIONS (NOV 2025) (DEVIATION)

(a) *Definitions.* As used in this provision—

Backhaul, covered article, covered telecommunications equipment or services, critical technology, FASCSA order, Intelligence community, interconnection arrangements, national security system, roaming, sensitive compartmented information, sensitive compartmented information system, source, and substantial or essential component have the meanings provided in the clause 52.240-91, Security Prohibitions and Exclusions.

Business operations means engaging in commerce in any form, including by acquiring, developing, maintaining, owning, selling, possessing, leasing, or operating equipment, facilities, personnel, products, services, personal property, real property, or any other apparatus of business or commerce.

Marginalized populations of Sudan means—

(1) Adversely affected groups in regions authorized to receive assistance under section 8(c) of the Darfur Peace and Accountability Act (Pub. L. 109-344) (50 U.S.C. 1701 note); and

(2) Marginalized areas in Northern Sudan described in section 4(9) of such Act.

Restricted business operations means business operations in Sudan that include power production activities, mineral extraction activities, oil-related activities, or the production of military equipment, as those terms are defined in the Sudan Accountability and Divestment Act of 2007 (Pub. L. 110-174). Restricted business operations do not include business operations that the person (as that term is defined in Section 2 of the Sudan Accountability and Divestment Act of 2007) conducting the business can demonstrate—

(1) Are conducted under contract directly and exclusively with the regional government of southern Sudan;

(2) Are conducted under specific authorization from the Office of Foreign Assets Control in the Department of the Treasury, or are expressly exempted under Federal law from the requirement to be conducted under such authorization;

(3) Consist of providing goods or services to marginalized populations of Sudan;

(4) Consist of providing goods or services to an internationally recognized peacekeeping force or humanitarian organization;

(5) Consist of providing goods or services that are used only to promote health or education; or

(6) Have been voluntarily suspended.

Sensitive technology—

(1) Means hardware, software, telecommunications equipment, or any other technology that is to be used specifically—

(i) To restrict the free flow of unbiased information in Iran; or

(ii) To disrupt, monitor, or otherwise restrict speech of the people of Iran; and

(2) Does not include information or informational materials the export of which the President does not have the authority to regulate or prohibit pursuant to section 203(b)(3) of the International Emergency Economic Powers Act (50 U.S.C. 1702(b)(3)).

(b) *Procedures*.

(1) *Covered telecommunications and video surveillance*. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at https://www.sam.gov for entities excluded from receiving federal awards for “covered telecommunications equipment or services.”

(2) *FASCSA Orders*.

(i) The Offeror shall search in SAM for the phrase “FASCSA order” for any covered article, or any products or services produced or provided by a source, if there is an applicable FASCSA order described in paragraph (e) of FAR 52.240-91, Security Prohibitions and Exclusions.

(ii) The Offeror shall review the solicitation for any FASCSA orders that are not in SAM but are effective and apply to the solicitation and resultant contract (see FAR 40.204-1(c)(2)).

(iii) FASCSA orders issued after the date of solicitation do not apply unless added by an amendment to the solicitation.

(c) *Covered telecommunications equipment or services representations*. By submission of its offer, the Offeror represents that, after conducting a reasonable inquiry (that looks at any information in the Offeror's possession but does not need to include an internal or third-party audit)—

(1) It will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation, except as waived by the solicitation, or as disclosed in paragraph (g); and

(2) It does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services, except as waived by the solicitation, or as disclosed in paragraph (g).

(d) *FASCSA Representation*. By submission of this offer, the offeror represents that it has conducted a reasonable inquiry, and that the offeror does not propose to provide or use in response to this solicitation any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA order in effect on the date the solicitation was issued, except as waived by the solicitation, or as disclosed in paragraph (g). A reasonable inquiry will look at any information in the offeror's possession but does not need to include an internal or third-party audit.

(e) *Sudan certification*. By submission of its offer, the offeror certifies, after conducting a reasonable inquiry (that looks at any information in the offeror's possession but does not need to include an internal or third-party audit), that the offeror does not conduct any restricted business operations in Sudan.

(f) *Iran Representation and Certifications*.

(1) Except as provided in paragraph (f)(2) of this provision or if a waiver has been granted in accordance with FAR 40.203-3, the offeror, after conducting a reasonable inquiry (that looks at any information in the offeror's possession but does not need to include an internal or third-party audit), by submission of its offer—

(i) Represents, to the best of its knowledge and belief, that the offeror does not export any sensitive technology to the government of Iran or any entities or individuals owned or controlled by, or acting on behalf or at the direction of, the government of Iran;

(ii) Certifies that the offeror, or any person (as defined at section 15 of the Iran Sanctions Act of 1996, Pub. L. 104-172, 50 U.S.C. 1701 note) owned or controlled by the offeror, does not engage in any activities for which sanctions may be imposed under section 5 of the Act. These sanctioned activities are in the areas of development of the petroleum resources of Iran, production of refined petroleum products in Iran, sale and provision of refined petroleum products to Iran, and contributing to Iran's ability to acquire or develop certain weapons or technologies; and

(iii) Certifies that the offeror, and any person owned or controlled by the offeror, does not knowingly engage in any transaction that exceeds $15,000 with Iran's Revolutionary Guard

Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked pursuant to the International Emergency Economic Powers Act (50 U.S.C. 1701 et seq.) (see OFAC's Specially Designated Nationals and Blocked Persons List at https://www.treasury.gov/resource-center/sanctions/SDN-List/Pages/default.aspx)

(2) Exception for trade agreements. The representation and certification requirements of paragraph (f)(1) of this provision do not apply if—

(i) This solicitation includes a trade agreements notice or certification (e.g., 52.225-6, Trade Agreements Certificate); and

(ii) The offeror has certified that all the offered products to be supplied are designated country end products or designated country construction material.

(iii) The offeror shall email questions concerning sensitive technology to the Department of State at CISADA106@state.gov.

(g) *Disclosure*.

(1) If the Offeror is not able to represent compliance with the prohibitions in paragraphs (c) or (d), then the Offeror shall disclose within 72 hours to the contracting office identified in paragraph (g)(2) the following information for each product or service not compliant:

(i) Contract number and order number, if applicable;

(ii) Identification of whether this disclosure relates to paragraph (c) on covered telecommunication equipment or services, or to paragraph (d) on FASCSA orders;

(iii) A description of the products or services that the Contractor identifies or has reason to suspect is prohibited (include brand; model number, such as the original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable);

(iv) The entity that produced the product or service (include entity name, unique entity identifier, Contractor and Government Entity (CAGE) code, facilities responsible for design, fabrication, assembly, packaging, and test of the product, and whether the entity was the OEM or a distributor (provide manufacturer codes and distributor codes used for the product));

(v) Description of the functionality of the product or service and how that functionality impacts the risk to the product or service;

(vi) An explanation of any factors relevant to determining if the product or service should be permitted by an applicable exception, exemption, or waiver (if the offeror would like the Government to consider a waiver);

(vii) Whether alternative products or services are available that would be compliant with the prohibition;

(viii) If the product or service is related to item maintenance, include the following information on the item being maintained:

(A) Brand;

(B) Model number, OEM number, manufacturer part number, or wholesaler number; and

(C) Item description, as applicable.

(ix) Any readily available information about mitigation actions undertaken or recommended.

(2) If a disclosure is required to be submitted to a contracting office, the offeror shall submit the disclosure as follows:

(i) If a Department of Defense contracting office, the offeror shall submit the disclosure to the website at *https://dibnet.dod.mil*.

(ii) For all other contracting offices, the Offeror shall submit the disclosure to the Contracting Officer.

(3) If the disclosure provided does not contain any of the information required by paragraph (1), and the Offeror later discovers new information that is required by paragraph (1), then the Offeror shall submit a subsequent disclosure within 72 hours of discovering the new information.

(h) *Executive agency review of disclosures*. The Contracting Officer will review disclosures provided in paragraph (g) to determine if any applicable waiver may be sought. The Contracting Officer may choose not to pursue a waiver and may instead make an award to an Offeror that does not require a waiver.

(End of Provision)

E.8 52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

https://www.acquisition.gov/far-overhaul/far-part-deviation-guide/far-overhaul-part-52#FAR_52_252_2
http://www.va.gov/oal/library/vaar/index.asp (VAAR)

(End of Provision)

E.9 52.252-5 AUTHORIZED DEVIATIONS IN PROVISIONS (NOV 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.

(b) The use in this solicitation of any VAAR Acquisition Regulation (48 CFR Chapter FEDERAL ACQUISITION REGULATION (48 CFR Chapter 8)) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of Provision)

FAR Number	Title	Date
52.203-11	CERTIFICATION AND DISCLOSURE REGARDING PAYMENTS TO INFLUENCE CERTAIN FEDERAL TRANSACTIONS	SEP 2024
52.203-18	PROHIBITION ON CONTRACTING WITH ENTITIES THAT REQUIRE CERTAIN INTERNAL CONFIDENTIALITY AGREEMENTS OR STATEMENTS—REPRESENTATION	JAN 2017
52.204-7	SYSTEM FOR AWARD MANAGEMENT—REGISTRATION (DEVIATION)	NOV 2025
852.215-72	NOTICE OF INTENT TO RE-SOLICIT	OCT 2019
852.233-70	PROTEST CONTENT/ALTERNATIVE DISPUTE RESOLUTION	OCT 2018
852.233-71	ALTERNATE PROTEST PROCEDURE	OCT 2018
852.239-75	INFORMATION AND COMMUNICATION TECHNOLOGY ACCESSIBILITY NOTICE	FEB 2023

(End of Addendum to 52.212-1)

E.10 52.212-2 EVALUATION—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (NOV 2021)(DEVIATION OCT 2025)

(a) Evaluation factors. The Government will award a contract resulting from this solicitation to the responsible Offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The quotes will undergo a comparative evaluation to determine which vendor provides the best value to the government in terms of meeting the performance work statement, while also providing a competitive price. The following factors shall be used to evaluate offers:

Factor 1: Technical

- Offeror is technically capable of providing all required line items and provides authorized distributor's letter for branded flooring materials.

Factor 2: Delivery / Period of Performance

- Provide an overview of the delivery timeline. Indicate if there are any supply chain and/or long lead timelines. The Government will review the lead time for delivery and completion. A shorter delivery time will be considered more favorable.

Factor 3: Socioeconomic Considerations

- Socioeconomic Considerations: In an effort to achieve socioeconomic small business goals, the Government will evaluate proposed participation in performance of the contract by Service-Disabled Veteran-Owned Small Businesses ("SDVOSB") and

Veteran-Owned Small Businesses (“VOSB”). The following clauses, which are included in the Addendum to FAR 52.212-4 in Section C in of this Solicitation, set forth what will be considered under this evaluation factor.
- VAAR 852.215-70, SDVOSB and VOSB Evaluation Factors (DEC 2009)
- VAAR 852.215-71, Evaluation Factor Commitments (DEC 2009)
- VAAR 852.219-76, VA Notice of Limitations on Subcontracting – Certificate of Compliance for Supplies and Products (JAN 2023) (DEVIATION)

Factor 4: Price

- Complete all contract line-item numbers (CLIN) listed in section B2 Price/Cost Schedule. The quote should contain the quoter’s best terms from a price standpoint. The Government will evaluate quotes for award purposes by adding the total price for all contract line-items. Price quote must be submitted separately from the other factor submissions.

(c) A written notice of award or acceptance of an offer, mailed or otherwise furnished to the successful offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of Provision)

See attached document: Brand Name Justification .